
Internet access as a fundamental right

Exploring aspects
of connectivity



STUDY

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Author: Hendrik Mildebrath
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With digital ubiquity on the rise, calls for the establishment of a fundamental right to internet access have resurfaced. Against this backdrop, it would come as no surprise if legislators further engage with the topic and assess policy and legislative options. The present analysis i) identifies design and operating parameters for a potential fundamental right to internet access, ii) sets out a design option, iv) reviews benefits and drawbacks of its potential recognition, and v) offers a brief overview of EU legislation and actions that may interact with such a novel right.

AUTHOR(S)

Hendrik Mildebrath, Members' Research Service.

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To contact the author, please email: eprs@ep.europa.eu

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eprs@ep.europa.eu
<http://www.eprs.ep.parl.union.eu> (intranet)
<http://www.europarl.europa.eu/thinktank> (internet)
<http://epthinktank.eu> (blog)

Executive summary

With digital technologies permeating all areas of life, and the internet becoming a prerequisite to exercising a number of fundamental rights, its importance for the individual can hardly be overstated. Industry and civil society are clearly in favour of full connectivity, and calls for a human or fundamental right to internet access have recently resurfaced. Prominent figures, such as the European Parliament's President, David Sassoli, and the founder of the worldwide web, Sir Timothy Berners-Lee, expressly advocate a fundamental right to internet access. Most academics either share this view or adopt a 'wait and see approach'.

So far, courts have protected established (and potential) connections as well as the exercise of fundamental rights on the internet from unjustified interferences. They have not yet recognised a right to connectivity that would enable individuals to compel states, by way of legal action, to provide for electronic communications services ensuring their access to the internet. Although courts and legislators would face challenges in reconciling such a novel right to internet access with the prevailing legal frameworks, these do not present absolute barriers. The present analysis draws on the public service provisions laid down in the European Electronic Communications Code, the German constitution and the European Pillar of Social Rights, to reflect on the design options and prospects for such a right. Economic and doctrinal considerations warrant a narrow scope that guarantees an adequate level of connectivity necessary for socioeconomic participation rather than for the use of cutting-edge technologies. Nevertheless, such a fundamental right may spur internet adoption and future-proof network expansion, and thereby incidentally boost next-generation connectivity. Individuals would likely only be able to litigate effectively for access where states failed to provide for the fundamentally protected minimum level of connectivity.

At European level, the European Convention on Human Rights and the EU Charter of Fundamental Rights may serve as a bedrock for the envisioned right. However, in particular it is the existing universal service provisions in the European Electronic Communications Code and the option of introducing a right to internet access in an EU secondary legislative act that raise concerns about the necessity of a European fundamental right to internet access. Nevertheless, codification at a fundamental level may better reflect the internet's unmatched significance for the individual, and contribute effectively to closing the digital divide. Individuals may feel more entitled and claim their right more decisively or even litigate. Additionally, a fundamental right to internet access would present a potent political tool to herald Europe's digital transformation and sovereignty, and demonstrate progressiveness as well as the capacity of the enacting organisation to deliver. The relevant organisation would actively determine developments in the area of 'digital rights', rather than passively follow the evolution of case law. Commercial viability and concerns spilling over from the freedom of expression and information context, particularly as regards the lawfulness of connectivity and content restrictions, may present sticking points when negotiating the introduction of a standalone right to internet access.

Although not further discussed in this analysis, it should be noted that when shifting the perspective from the European to global level, the sense of urgency for the introduction of such a right increases dramatically: 'almost half the world population was not connected to the internet in 2019 and therefore not able to take advantage of the transformative power of information and communication technologies'.¹

¹ 'More urgent than ever: Universal connectivity to bring 3.7 billion people online', [press release](#), International Telecommunication Union, 11 December 2020.

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1. EU socioeconomic setting

Internet coverage in the European Union (EU) is impressive, standing at 100 %; however, numbers on de facto usage (85 %), broadband take-up (78 %), users with at least basic digital skills (58 %), next-generation access coverage providing at least 30 Mbps (86 %) and 5G readiness (21 %) cloud the picture.² In rural areas,³ 10 % of the households are not covered by any fixed network and 41 % are not covered by next-generation access technology⁴ capable of reaching 30 Mbps.⁵ Some 8.4 % of those EU residents who had a fixed broadband subscription did not receive the minimum of 10 Mbps *approximately* necessary for ensuring the functionality of basic services⁶ in 2020. The proportion of these people ranged from 23.3 % in Italy, to 7.8 % in Slovenia and 0.3 % in Greece.⁷ Currently, there are no official, EU-wide, and up-to-date reports on the contract compliance of internet service providers (ISPs), but there are strong indications that ISPs are not delivering the speeds advertised.⁸

The significance of these circumstances does not only lie in the economic implications⁹ but also in the **severe consequences for the individual and society**.¹⁰ People without adequate internet access are missing out on means of participation and opportunities that have become part of everyday life. Countless contributions have been published on socioeconomic inequalities relating to access to, use of or impact of ICTs, known as the digital divide(s).¹¹ Most recently, the World Wide

² [Report on DESI 2020 – Human capital](#), [Report on DESI 2020 – Connectivity](#) and [Q&A on the Digital Economy and Society Index](#), European Commission.

³ See definition in Report on Broadband Coverage in Europe 2018, [SMART 2016/0043](#), DG CNECT, European Commission, p. 16.

⁴ VDSL, VDSL2 vectoring, FTTP, DOCSIS 3.0 and DOCSIS 3.1.

⁵ [Report on DESI 2020 – Connectivity](#), European Commission, p. 6.

⁶ In the 2016 Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, p. 9 and p. 11, Tech4i2 Ltd et al. estimated that the services in Table 1 (see below) would require a download bandwidth of 9.6 Mbps in 2020. For more information see footnote 120.

⁷ [Digital Scoreboard: Broadband speeds and prices](#), European Commission website, June 2020.

⁸ According to the [Annual report on net neutrality in Germany 2019-2020](#), the German Federal Network Agency received more complaints on internet speed in 2019 alone (1 790 complaints) than in the two preceding years (around 1 500 complaints). According to the October 2014 Study on quality of broadband services in the EU, [SMART 2010/0036](#), DG CNECT, European Commission, the actual download speed is 75.6 % of the advertised speed. According to the Commission's [consultation on Needs for internet speed and quality beyond 2020](#), many users consider that their needs are not fully fulfilled.

⁹ According to L. Holt and M. Jamison, [Broadband and contributions to economic growth: lessons from the US experience](#), *Telecommunications Policy*, Vol. 33(10-11), 2009, p. 575-581, 2011, a 10 % increase in broadband connections could result in a 1 % increase in GDP per capita per year and could raise labour productivity by 1.5 % over a period of five years. See also [Broadband in the EU Member States](#), Special Report No 12 2018, European Court of Auditors, p. 9. The Commission raised the issue of safeguarding global competitiveness and prosperity in its communication on Connectivity for a competitive digital single market, [COM\(2016\)587](#), 14 September 2016; See also the [Telekommunikation 2011: Investitionsanreize stärken, Wettbewerb](#), Sondergutachten 61, German Monopolies Commission, pp. 90-91, and [Digital Scoreboard: Internet fixed connection speed is not sufficient](#), European Commission website.

¹⁰ For a user perspective, see staff working document on Connectivity for a Digital Single Market, [SWD\(2016\)300](#), European Commission, 14 September 2016, pp. 5-7. For the European Commission's vision of the future, see communication on 2030 Digital Compass, [COM\(2021\)118](#), European Commission, 9 March 2021, pp. 2-3. For more examples, see Report of the special rapporteur on the promotion and protection of the right to freedom of opinion and expression, Frank La Rue, [A/HRC/17/27](#), Human Rights Council, 16 May 2011, and B. Çalı, 'The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 280 et seq.

¹¹ M. Negreiro, [Bridging the Digital Divide in the EU](#), Briefing, EPRS, European Parliament, December 2015; D. Rückert et al., [The growing digital divide in Europe and the United States](#), Working Papers 2020/07, European Investment Bank,

Web Foundation analysed that 'men remain 21 % more likely to be online than women, rising to 52 % in the world's least developed countries'.¹² These divides will only deepen, as disconnected citizens are likely to miss out on long-term benefits of innovation (information society) and modernisation, including the internet of things (IoT) and connected infrastructure (smart cities).¹³ One commentator pointedly sums up that it is 'unacceptable for technical and societal constraints to create an analogue underclass'.¹⁴ However, even those avid users who begin to rely on the internet to exercise their fundamental rights are vulnerable to access interference, such as slow speed, censorship or arbitrary filtering, blocking and takedowns.¹⁵

Only recently, the **coronavirus pandemic has exacerbated¹⁶ the social inequalities** related to insufficient connectivity: privileged users have experienced dropped calls and disrupted downloads, while disadvantaged users have been left with no access at all or with makeshift solutions – notably when the catering businesses and public facilities, such as libraries, were closed due to social distancing measures.¹⁷ The OECD reported an increase of as much as 60 % in internet traffic compared to before the crisis.¹⁸ Not least in opposition to these deplorable conditions, commentators assert a fundamental right to internet access.

28 April 2020; Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 50-53, showcases how universal service obligations address social exclusion problems.

¹² [The gender gap in internet access: using a women-centred method](#), World Wide Web Foundation website.

¹³ The European Commission [illustrates](#) the European Gigabit Society with examples: doctors could operate remotely or closely monitor patients at home; cities could turn to intelligent energy consumption or to traffic lights based on real-time needs; factories of the future would have interconnected machines, robots, automated processes, goods and remote workers in real time; connected cars could be driving on European roads.

¹⁴ Financial Times Editorial Board, [Time to close the digital divide](#), *Financial Times*, 22 May 2020.

¹⁵ [Arbitrary internet blocking jeopardises freedom of expression](#), Council of Europe website; [Comparative study on blocking, filtering and take-down of illegal internet content](#), Secretary General, Council of Europe, 20 December 2015; [Country reports on filtering, blocking and take-down of illegal content on the internet](#), Council of Europe website; S. Tully, 'A Human Right to Access the Internet? Problems and Prospects', *Human Rights Law Review*, Vol. 14(2), 2014, pp. 191-192.

¹⁶ On the impact of the COVID pandemic on education, see Staff working document on Digital Education Action Plan 2021-2027, [SWD\(2020\) 209 final](#), European Commission, 30 September 2020, pp. 73-78.

¹⁷ The *New York Times* Editorial Board, [Doing schoolwork in the parking lot is not a solution](#), *The New York Times*, 18 July 2020.

¹⁸ [Keeping the Internet up and running in times of crisis](#), OECD website. Commissioner Breton [called](#) on streaming services, operators and users to prevent network congestions; M. Negreiro, [How digital technology is easing the burden of confinement](#), EPRS, European Parliament, 2020, documents the surge in internet demand; The Summary report on the status of internet capacity, regulatory and other measures in light of the COVID-19 crisis, [BoR \(20\) 142](#), Body of European Regulators for Electronic Communications (BEREC), 31 July 2020, maintains that traffic increased, but no major congestion issues occurred.

Table 1 – Internet-based services and socioeconomic implications for the individual

	Community	Crime and public safety	Education and skills	Environment	Equality and inclusion	Finance and income	Health and care	Well-being
Email	Y	Y	Y	Y	Y	Y	Y	Y
Search engines	Y	Y	Y	Y	Y	Y	Y	Y
Information about goods and services					Y	Y		
Training and education			Y					
Online newspapers/news	Y				Y			Y
Buying/ordering goods and services					Y	Y		
Professional networking	Y		Y			Y		
Finding information about any subject	Y	Y	Y	Y	Y	Y	Y	Y
Seeking health information							Y	Y
Internet banking					Y	Y		
Social media/instant messaging	Y							Y
eGovernment service use	Y	Y	Y	Y	Y	Y	Y	Y
Telephoning or video calls (standard quality)	Y	Y	Y	Y	Y	Y	Y	Y

Source: Review of the scope of universal service, [SMART 2014/0011](#), European Commission, 2016, p. 50

Recently, the European Parliament President, David Sassoli, held that 'access to the internet must be recognised as a new human right'.¹⁹ This call was echoed by the internet pioneer and founder of the world-wide web, Sir Timothy 'Tim' Berners-Lee, and complemented by a deep dive into European connectivity policies by the European Commission President, Ursula von der Leyen, in a follow-up video debate.²⁰ Already in her State of the Union address,²¹ President von der Leyen had emphasised the benefits of boosting broadband connectivity and later announced a digital roadmap with clearly

¹⁹ European Parliament President, D. Sassoli, [Access to the internet must be recognised as a new human right](#), 24 July 2020.

²⁰ [Video debate with David Sassoli, EP President: 'Internet access: a new human right'](#), European Parliament website, especially 9:27-9:45.

²¹ European Commission President, U. von der Leyen, [State of the Union address](#), 16 September 2020.

defined connectivity goals for 2030 in the Commission work programme 2021.²² On these occasions, President von der Leyen repeatedly highlighted the accelerated funding of connectivity as a flagship project of the €672.5 billion Recovery and Resilience Facility,²³ with 20 % dedicated to digital investments and reforms. While the overwhelming majority²⁴ of commentators agree on the desirability of universal broadband coverage, opinions on a fundamental right to internet access diverge.²⁵ Although this does not necessarily reflect disagreement, it is remarkable that President Sassoli calls for a human right to internet access, while President von der Leyen refrains from using fundamental rights rhetoric. The range of views is best illustrated by the contradictory positions of Sir Timothy Berners-Lee, who supports the concept, and Vinton G. Cerf, another internet pioneer, who resolutely opposes the concept.²⁶

²² Communication on Commission work programme 2021 and Annexes 1-4, [COM\(2020\) 690 final](#), European Commission, p. 4, announced Europe's digital decade: 2030 digital targets for Q1 2021; Communication on 2030 Digital Compass, [COM\(2021\)118](#), European Commission, 9 March 2021.

²³ [Recovery and resilience facility](#), European Commission website; [Optimising recovery and resilience facility funding for connectivity](#), European Commission website.

²⁴ See Section '4. Stakeholders' opinion' below.

²⁵ See Section '3.2. Benefits and drawbacks' below.

²⁶ V. Cerf, [Internet access is not a human right](#), *The New York Times*, 4 January 2012.

2. Approach

In response to the widespread demand for universal connectivity and as a starting point for further discussions, the present analysis primarily explores aspects of connectivity. It focuses on the prospects, design and effect of a fundamental right to internet access that would enable individuals to compel states, by way of legal action, to provide for electronic communications services ensuring their access to the internet and thereby connectivity to virtually all end points of the internet.²⁷ While the (controversial) distinction between human rights and fundamental rights should not be marginalised,²⁸ the term 'fundamental rights' is used as a shorthand to capture common threads between the two.²⁹ The present analysis follows a legal/policy approach and incidentally refers to doctrinal-philosophical aspects. Since commentators have repeatedly dedicated sections of their works to the historical emergence of the debate on a fundamental right to internet access,³⁰ this paper focuses on a way forward and the contextualisation of the issue within the European legal framework. While internet and content restrictions are gradually finding their boundaries in the right to freedom of expression and information (partially disguised in a right to internet rhetoric),³¹ courts have not yet interpreted this pre-existing right as a suitable legal basis on which the general public may effectively demand from states to provide for connectivity through material or regulatory intervention. Although this has been under discussion for at least 10 years,³² if not longer,³³ courts have refrained from revealing, much less adopting, a position on the matter. Nevertheless, they would likely face challenges when attempting to operationalise rationales from cases concerning, for instance, access to private property and media pluralism.³⁴ Additionally, courts would likely only provide guidance on a piecemeal basis, since they do not usually review contentious issues in a general manner, but only insofar as the facts of the particular case are concerned. Against this backdrop and because the recognition of a right to internet access would constitute a fundamental decision, it would come as no surprise if legislators further engage with the topic and assess their legislative options. This paper attempts to develop a right that integrates with the traditions of legal frameworks and may thus find approval among states.

In a first step, the analysis explores the legal debate (Section 2.). Drawing on lessons learned from the pre-existing legal framework, case law and academia, relevant parameters for the design of a

²⁷ Similarly, see Article 2(2) and Recital 4 of the Open Internet Access Regulation [2015/2120](#); for details on the definitions, see Guidelines on the Implementation by National Regulators of European Net Neutrality Rules, [BoR \(16\) 127](#), BEREC, August 2016, pp. 6-7.

²⁸ O. Pollicino, '[The Right to Internet Access: Quid iuris?](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, pp. 264-265, from another context see B. van der Sloot, '[Legal Fundamentalism: Is Data Protection Really a Fundamental Right](#)', in: R. Leenes et al., *Data Protection and Privacy: (In)visibilities and Infrastructures*, Springer, 2017, pp. 13-19, and see Section '3.3. Legal footing' in the present paper.

²⁹ For a similar approach, see L. Gill et al., '[Towards digital constitutionalism? Mapping attempts to craft an internet bill of rights](#)', Berkman Center Research Publication No 2015-15, 9 November 2015, pp. 2-3.

³⁰ See A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 23-61; N. Lucchi, '[The role of internet access in enabling individual's rights and freedoms](#)', EUI WP RSCAS 2013/46, July 2013; O. Pollicino, '[The Right to Internet Access: Quid iuris?](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, pp. 263-268.

³¹ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 62-92; W. Benedek and M. Kettemann, '[Freedom of Expression and the internet](#)', 1st edition, Council of Europe Publishing, December 2013; [Guide on Article 10 of the ECHR](#), ECtHR, 31 August 2020, pp. 106-107; [Factsheet – Access to Internet and freedom to receive and impart information and ideas](#), Council of Europe, February 2021.

³² [Report on Freedom of Connection – Freedom of Expression](#), Division for Freedom of Expression, Democracy and Peace, UNESCO, 29 November 2010, pp. 18-19; P. De Hert and D. Kloza, '[Internet \(access\) as a new fundamental right. Inflating the current rights framework?](#)', *European Journal of Law and Technology*, Vol. 3(3), 2012.

³³ Article 5A(2) of the Greek constitution was introduced back in 2001. See also A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 23-61.

³⁴ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161.

fundamental right to internet access are identified and a design option is pointed out (Section 2.1.). After developing this departure point for discussion, the benefits and drawbacks (Section 2.2.) as well as suitable legal frameworks (Section 2.3.) are explored. In a second step, stakeholders' opinions are reviewed in order to gauge approval ratings (Section 3.). The final section before the conclusion casts a cursory glance at EU legislation and actions that may interface with a novel right to internet access and thereby draws attention to its versatility and to facets that remain to be clarified.

3. The legal debate

With digital technologies permeating all areas of life and the internet becoming a prerequisite to exercising a number of fundamental rights, legislators, the industry, academics and civil society organisations are contemplating a fundamental right to internet access. Actors have deliberated over the delineation and emancipation of such a right in various contexts, particularly in the contexts of the United Nations treaties on human rights, the European Convention on Human Rights, the EU Charter of Fundamental Rights and the national constitutions.

3.1. Delimiting the scope

Several themes cut across all levels of discussion, notably as regards the desired scope (normative content) of a right to internet access and its limitations.

3.1.1. Lessons learned from case law

So far, neither the European Court for Human Rights (ECtHR),³⁵ nor the Court of Justice of the European Union (CJEU)³⁶ has explicitly derived a right to connectivity, based on which individuals may compel states to provide for internet access by way of legal action. Instead, they protect the (self-reliant) enjoyment of **internet access** and **online content** against interferences by invoking the **freedom of expression and information** pursuant to Article 10 of the European Convention on Human Rights (ECHR) and Article 11 of the EU Charter of Fundamental Rights (CFR) respectively.

'Any measure taken by State authorities or private-sector actors to block, filter or remove **internet content** [...] must in particular be prescribed by a law which is accessible, clear, unambiguous and sufficiently precise to enable individuals to regulate their conduct. They must at the same time be necessary in a democratic society and proportionate to the legitimate aim pursued'³⁷ (bolding added for emphasis). However, as shown by sector-specific EU legislation,³⁸ there is no compliant one-size-fits-all legal regime that covers such measures. Currently, there is great uncertainty regarding the legality and design³⁹ of filtering obligations.⁴⁰ Even the recently adopted Article 17 of

³⁵ [Factsheet – Access to internet and freedom to receive and impart information and ideas](#), ECtHR, February 2021. For details on the wider context, see [Guide on Article 10 of the ECHR](#), ECtHR, 31 August 2020, p. 100 et seq. (pp. 106-107 on access); W. Benedek and M. Kettemann, *Freedom of expression and the internet*, 2nd edition, Council of Europe Publishing, August 2020.

³⁶ Judgment in [Case C-70/10 – Scarlet Extended v SABAM](#), CJEU, 24 November 2011, para. 50 and Judgment in [Case C-360/10, SABAM v Netlog](#), CJEU, 16 February 2012. For a contextualisation, see W. Benedek and M. Kettemann, *Freedom of Expression and the internet*, 1st edition, Council of Europe Publishing, December 2013, p. 76 and 78, and L. Jasmontaite and P. De Hert, '[Access to the internet in the EU](#)', Brussels Privacy Hub Working Paper, Vol. 6(19), February 2020, p. 13.

³⁷ [Thematic factsheet on Freedom of expression, the internet and new technologies](#), Council of Europe, June 2018.

³⁸ Article 17 of the Copyright Directive ([EU](#) 2019/790); Article 5(2) of the [Regulation](#) on preventing the dissemination of terrorist content online; Article 25 of the Directive [2011/93/EU](#) on combating sexual abuse and sexual exploitation of children; Article 28b(1) and (3) subpara. 2 of the Revised Directive [2010/13/EU](#) on coordinating certain aspects of audio-visual media services. In the same vein, see judgment in [Case with application No 3111/10, Ahmet Yıldırım v. Turkey](#), ECtHR, 18 December 2012, para. 33.

³⁹ [The impact of algorithms for online content filtering or moderation](#), Policy Department for Citizens' Rights and Constitutional Affairs, European Parliament, September 2020; [Online Platforms' Moderation of Illegal Content Online](#), Policy Department for Economic, Scientific and Quality of Life Policies, European Parliament, June 2020.

⁴⁰ Voluntary (or proactive) filtering by private entities adds another layer of complexity. Here, issues of horizontal effect and duties of protection on public authorities to prevent third-party interference with the users' right to freedom of expression arise. For details, see E. Frantziou, [The Horizontal Effect of the Charter](#), *Cambridge Yearbook of European Legal Studies*, Vol. 22, 2020 and [The impact of algorithms for online content filtering or moderation](#), Policy Department for Citizens' Rights and Constitutional Affairs, European Parliament, September 2020, p. 56.

the Copyright Directive is being challenged before the CJEU by Poland on the basis that the incentivised content control mechanisms would undermine the essence of the right to freedom of expression and information.⁴¹

Drawing on the French *Hadopi* case,⁴² Article 100 of the EEC⁴³ and ECtHR considerations on access restrictions,⁴⁴ the right to freedom of expression would likely also protect established and potential **internet connections** (connectivity) from unjustified interferences like arbitrary internet shutdowns and suspension of services. In other cases, authorities were obliged to lift access restrictions and provide prisoners with connectivity pursuant to the prisoners' rights to information and education.⁴⁵ However, these cases have limited meaning for the broader context, since the public authorities presented weak arguments in support of restricting prisoners' access and the ECtHR held⁴⁶ that there was no general right to internet access to the benefit of prisoners. Even if this judgement were interpreted as requiring a positive intervention from the state to facilitate internet access, the rationale could not be extended to benefit the general public, as the ECtHR explicitly objected to generalisations. In the long run, consistency between the rulings of the ECtHR and the CJEU may result from Articles 52(3) and 53 of the CFR.

On a constitutional (national) level, similar considerations likely apply, since an ECtHR survey among 20 CoE member States⁴⁷ revealed 'that the right to internet access is protected in theory by the constitutional guarantees applicable to freedom of expression and freedom to receive ideas and

⁴¹ Action in [Case C-401/19, Poland v Parliament and Council](#), 24 May 2019; B. Jütte and C. Geiger, [Regulating freedom of expression on online platforms? Poland's action to annul Article 17 of the Directive on Copyright in the Digital Single Market Directive](#), European Law Blog, 3 February 2021.

⁴² Decision [No 2009-580 DC](#), Conseil Constitutionnel, 10 June 2009; for a brief overview see O. Pollicino, ['The Right to Internet Access: Quid iuris?'](#), in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 268; see considerations on Article 100 of the EEC in the Section '5.1.1. Adopted initiatives' below.

⁴³ See considerations on Article 100 of the EEC in the Section '5.1.1. Adopted initiatives' below.

⁴⁴ Judgment in [Case with application No 3111/10, Ahmet Yıldırım v. Turkey](#), ECtHR, 18 December 2012, para. 30 quotes the United National Human Rights Committee: 'Any restrictions on the operation of websites, blogs or any other Internet-based, electronic or other such information-dissemination system, including systems to support such communication, such as Internet service providers or search engines, are only permissible to the extent that they are compatible with paragraph 3. Permissible restrictions generally should be content-specific; generic bans on the operation of certain sites and systems are not compatible with paragraph 3. It is also inconsistent with paragraph 3 to prohibit a site or an information-dissemination system from publishing material solely on the basis that it may be critical of the government or the political social system espoused by the government.' See also para 64: 'a legal framework is required, ensuring both tight control over the scope of bans and effective judicial review to prevent any abuse of power' and the dissenting opinion of Judge Pinto De Albuquerque: 'In any case, blocking access to the Internet, or parts of the Internet, for whole populations or segments of the public can never be justified, including in the interests of justice, public order or national security'.

⁴⁵ Judgment in [Case with application No 21575/08, Jankovskis v Lithuania](#), ECtHR, 17 January 2017: Within the narrow scope of the prisoner's application, the Court grants access to a website, which requires access to internet-infrastructure and a terminal device as a precondition; A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 84-88 (esp. pp. 86-87) interprets this judgment as obliging the state to refrain from interference with an internet connection, i.e. deriving a negative obligation. For more context, see [Factsheet – Access to Internet and freedom to receive and impart information and ideas](#), ECtHR, February 2021; [Internet: case-law of the European Court of Human Rights](#), ECtHR Research Division, June 2015; W. Benedek and M. Kettemann, [Freedom of Expression and the internet](#), 1st edition, Council of Europe Publishing, December 2013.

⁴⁶ Judgment in [Case with application No 17429/10, Kalda v Estonia](#), ECtHR, 19 January 2016, para 45; Judgment in [Case with application No 21575/08, Jankovskis v Lithuania](#), ECtHR, 17 January 2017, para. 55.

⁴⁷ Austria, Azerbaijan, Belgium, Czechia, Estonia, Finland, France, Germany, Ireland, Italy, Lithuania, the Netherlands, Poland, Portugal, Romania, Russia, Slovenia, Spain, Switzerland and the United Kingdom.

information. [...]'.⁴⁸ Subsequently, the ECtHR gave the French *Hadopi* case as a practical example:⁴⁹ The French Constitutional Council did not mandate a positive intervention by the state to facilitate internet access, but declared unconstitutional the blocking of internet access in cases of copyright infringement, in the absence of a prior judicial decision. The Council found a violation of the provisions on freedom of expression and freedom of communication as laid down in Articles 10 and 11 of Declaration 1789. Consequently, the ECtHR does not assume a *positive* right to internet access on a constitutional level. Despite the alleged homogeneity concerning freedom of expression and information, jurisdictional peculiarities, such as standalone fundamental rights to internet access, which are provided for in the Greek⁵⁰ and Portuguese⁵¹ constitutions, as well as other plausible constitutional grounds for a right to internet access, such as the right to non-discrimination⁵² and social welfare rights,⁵³ should not be overlooked.

3.1.2. Lessons learned from academia

Recently, scholars have seized the momentum to explore more visionary concepts of a right to internet access, all the while trying to reconcile design concepts with the existing fundamental laws. In this context, they carve out design limitations, but only few define specific entitlements beyond what is already determined by case law.⁵⁴ Generally, scholars deliberate on recognising a right to internet access by either extensively interpreting an existing right, such as freedom of expression and information,⁵⁵ the right to equal treatment⁵⁶ or the guarantee of an existential minimum in accordance with human dignity⁵⁷ (implied right), or by introducing an altogether new provision in

⁴⁸ Judgment in [Case with application No 3111/10, Ahmet Yildirim v. Turkey](#), ECtHR, 18 December 2012, para. 31. In light of the subsequent explanations, notably in paras. 32 and 33, the individual would be protected against disproportionate restrictions on the access to internet connections and online content.

⁴⁹ Decision [No 2009-580 DC](#), Conseil Constitutionnel, 10 June 2009. For details, see N. Lucchi, [Regulation and Control of Communication: The French Online Copyright Infringement Law \(HADOPI\)](#), MPI for Intellectual Property & Competition Law Research Paper No 11-07, 20 April 2011.

⁵⁰ Article 5A(2) of the Greek constitution: 'All persons have the right to participate in the Information Society. Facilitation of access to electronically transmitted information, as well as of the production, exchange and diffusion thereof, constitutes an obligation of the State, [...].'

⁵¹ Article 35(6) of the Portuguese constitution: 'Everyone shall be guaranteed free access to public-use information technology networks, [...]'; [Portugal closes the digital divide via suite of digital public services](#), European Commission website.

⁵² Individuals may derive an entitlement to internet access from their right to equal treatment, where authorities had previously ensured internet access services for other individuals in a similar situation. See W. Werner, ['Recht auf schnelles Internet in Zeiten von SARS-CoV-2'](#), *Neue Zeitschrift für Verwaltungsrecht – Extra*, Vol. 39(22), 2020, p. 2.

⁵³ M. Kettemann, [Zugang zum Internet: Ein Grundrecht auch für Geflüchtete](#), *iRIGHTSinfo*, 16. October 2015; M. Kettemann, [Das Internetgrundrecht zwischen Völkerrecht, Staatsrecht und Europarecht Teil II](#), *Völkerrechtsblog*, 9 October 2015, who argues that such a right to internet access could be derived from a combined reading of a judgment from the Third Civil Senate of the German Federal Supreme Court, [III ZR 98/12](#), 24 January 2013, paras 17-22 and the First Senate of the German Federal Constitutional Court, [1 BvL 1/09](#), 9 February 2010.

⁵⁴ See A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161 and 212-216; L. Jasmontaite and P. De Hert, ['Access to the internet in the EU'](#), Brussels Privacy Hub Working Paper, Vol. 6(19), February 2020, p. 16 hold that 'Delineating the characteristics and scope of such a right is a complex task and any entitlement of individuals pursuant to such a right are far from clear'; S. Tully, ['A Human Right to Access the Internet? Problems and Prospects'](#), *Human Rights Law Review*, Vol. 14(2), 2014, p. 186 states: 'There is no shared understanding on how such a right can or out to be defined. What precisely are individuals entitled to: access to a computer, the infrastructure, information, the ability to communicate or a comprehensive service? [...]'.
⁵⁵ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161.

⁵⁶ Individuals may derive an entitlement to internet access from their right to equal treatment, where authorities had previously ensured internet access services for other individuals in a similar situation. See also W. Werner, ['Recht auf schnelles Internet in Zeiten von SARS-CoV-2'](#), *Neue Zeitschrift für Verwaltungsrecht – Extra*, Vol. 39(22), 2020, p. 2.

⁵⁷ M. Kettemann, [Zugang zum Internet: Ein Grundrecht auch für Geflüchtete](#), *iRIGHTSinfo*, 16. October 2015; M. Kettemann, [Das Internetgrundrecht zwischen Völkerrecht, Staatsrecht und Europarecht Teil II](#), *Völkerrechtsblog*, 9 October 2015; In Germany, the essential constitutional requirements for the design of basic welfare benefits follow

the fundamental legal framework (standalone right). While a separate codification should (not least for approval and consistency reasons) integrate with the 'traditions'⁵⁸ and principles of the surrounding legal framework, an implied right to internet access may additionally inherit limitations from the reinterpreted provisions. Instead of being tethered to the objectives and limitations of pre-existing rights (intrinsic limitations), standalone rights may be designed flexibly, with the caveat that they – like most fundamental rights – may be overruled by conflicting liberties, rights and interests in a case-specific balancing exercise (extrinsic limitations). Both approaches should integrate with the traditions and principles of the respective fundamental law.

As is apparent from the judicature on freedom of expression and information, a liberty right preventing authorities and certain private companies from excessively interfering with access to internet content and connectivity is or may well be recognised in many jurisdictions ('negative right').⁵⁹ One scholar indicates that individuals may compel states to facilitate internet access based on the right to freedom of expression and information, as interpreted in line with rationales from cases concerning media pluralism and access to private property such as infrastructure ('positive right').⁶⁰ 'The type of positive obligation would clearly vary based on the circumstances of the individual case, but possibilities include protecting the enjoyment of freedom of expression by regulating property rights or provid[ing] legal, regulatory or administrative frameworks (including those relating to network neutrality), which would ensure the accessibility of the Internet'.⁶¹ While she makes a very compelling case in support of such a positive obligation, it remains highly uncertain how courts would rule in practice. The cases discussed are 'not directly related to the field of study' and, as demonstrated by dissenting opinions, disputed in themselves. In addition, the applicability of their rationales is not always evident and uncertainties regarding the right's scope persist. Not least due to financial burdens,⁶² it remains unclear whether the individual is merely entitled to accessing pre-existing networks and the removal of unjustified access-barriers, or whether he or she may also claim, for instance, financial aid or even network expansion in order to gain access (or a regulatory framework to this effect). Finally, courts would likely only provide guidance in the long term, since they do not usually review contentious issues in a general manner, but 'only insofar as the facts of the particular case are concerned'. Consequently, legislators may feel inclined to act.

However, granting individuals subjective entitlements to internet access that potentially oblige authorities to interfere with the market economy through substantial investments or regulations

from the fundamental right to the guarantee of an existential minimum in accordance with human dignity (Article 1(1) in conjunction with Article 20(1) of the Basic Law).

⁵⁸ O. Pollicino, [Esame in sede referente dei DDL 1317 e 1561 \(diritto di accesso ad Internet\)](#), medialaws, 13 March 2015.

⁵⁹ See Section '3.1.2. Lessons learned from case law' and A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 62-92. In the context of devising a novel right to internet access, the question arises whether the individual is sufficiently protected or merits further protection by a standalone right to internet access.

⁶⁰ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161 and pp. 212-216.

⁶¹ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 142. The state would likely not be required to offer public internet access services.

⁶² A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 140. See W. Rüfner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C. F. Müller, 18 December 2006, pp. 693-708 and D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C. F. Müller, 30 September 2011, pp. 586-596 and pp. 605-619 on the topic of deriving positive rights to material intervention or social rights from pre-existing liberty rights.

(positive right⁶³ to the provision – i.e. fulfilment or ensuring⁶⁴ – of a service), seems challenging⁶⁵ to reconcile with fundamental laws. To warrant the provision of certain goods or services, fundamental laws either impose *obligations* on the state or provide the individuals with limited positive *rights*. Fundamental obligations on the states do not equate to entitlements, as they provide for very limited or no justiciability and typically provide the legislature with extensive margins of appreciation on how it wants to implement the abstract instructions.⁶⁶ In the same vein, the judiciary has been cautious in recognising subjective positive rights that would require extensive material or

⁶³ [The evolution of human rights](#), Council of Europe website, defines positive rights as requiring positive intervention from governments; In agreement with Peacock, *Human Rights and the Digital Divide*, pp. 112-116, the distinction between positive and negative rights are not always simple [see p. 115 on requirements for positive obligations]. On the integration of the concept of positive and negative rights/obligations with the concept of 'social rights' see D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, p. 574, O. De Schutter, [The Charter of Fundamental Rights as a Social Rights Charter](#), CRIDHO Working Paper 2018/4, July 2018, pp. 17-20 and M. Hildebrandt, [Law for Computer Scientists and Other Folk](#), Oxford University Press, 2020, pp. 99-102; On the concept of social rights see J. Iliopoulos-Strangas, 'Soziale Grundrechte', in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte VI/1*, C.F. Müller, 27 Mai 2010, pp. 299-348 and J. Lücke, 'Soziale Grundrechte als Staatszielbestimmung', in *Archiv des öffentlichen Rechts*, Vol. 107(1), 1982, pp. 15-60.

⁶⁴ See Office of the High Commissioner for Human Rights (OHCHR), [Fact Sheet No16, The Committee on Economic, Social and Cultural Rights](#), p. 4: 'Any analysis of obligations relating to economic, social and cultural rights cannot be isolated from the obligations inherent in securing the individual entitlements of the beneficiary of the right(s) in question. Most frequently, obligations are divided into "layers" reflecting duties to (a) respect, (b) protect, (c) promote, and (d) fulfil each of the rights contained in the Covenant.' On their meaning, see Inter-Parliamentary Union and the United Nations, [Human Rights: Handbook for Parliamentarians No 26](#), 2016, pp. 31-34. In the ECHR and ESC context, obligations on the state [follow](#) [pp. 31-32] a threefold classification system: 'respect', 'protect' and 'fulfil'. Article 51 of the CFR speaks of 'respect', 'observe' and 'promote'. Article 87f of the Basic Law (see below) mentions the obligation to 'ensure'.

⁶⁵ B. Çalı, [The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law](#), in A. von Arnault et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, pp. 279-280; O. Pollicino, [The Right to Internet Access: Quid Iuris?](#), in A. von Arnault et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 268, 270 and 274; W. Rübner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 684-688; D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, pp. 586-596; J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den „neuen“ Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren', in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105; D. Merten, 'Begriff und Abgrenzung der Grundrechte', in D. Merten and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 565-566; B. Hüpers and B. Reese, 'Vorbemerkung zu Titel IV', in J. Meyer and S. Hölscheidt, *Charta der Grundrechte der EU*, Nomos, 2019, paras. 20-21 on the Poland and UK 'opt-out' protocol.

⁶⁶ [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019; [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 19 et seq.; M. Butt et al., [Fundamental social rights in the constitutions of the Member States](#), EPRS, European Parliament, February 2000; J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den „neuen“ Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren' in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105; M. Möstl, 'Artikel 87f GG' in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 62-63; F. Shirvani, 'Soziale Grundrechte' in D. Merten and H.-J. Papier, *Handbuch der Grundrechte VIII*, C.F. Müller, 29 November 2016, pp. 585-624; D. Hahn, *Staatszielbestimmungen im integrierten Bundesstaat*, Duncker & Humblot, 2010, pp. 97-105; W. Rübner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 690-692; D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, pp. 592-593.

regulatory intervention from the government.⁶⁷ Nevertheless, most jurisdictions recognise a limited form of justiciability after the state has intervened.⁶⁸ This justiciability is often limited procedurally and substantively. In many jurisdictions, individuals would lack standing to bring certain procedures such as constitutional complaints before courts, and often the scope of the right is limited⁶⁹ due to a wide margin of the legislature. Ultimately, these alleged limitations do not present absolute design barriers, but should be taken into account. Notwithstanding, the judiciary in many jurisdictions is generally – not necessarily as regards extensive material intervention – warming up to unlocking the potential of positive rights,⁷⁰ and certain scholars⁷¹ see an opportunity to introduce a justiciable entitlement to internet access.

⁶⁷ T. von Danwitz and K. Paraschas, [A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#), *Fordham International Law Journal*, Vol. 35(5), 2017, p. 1410-1413; [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019; [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 19 et seq.; M. Butt et al., [Fundamental social rights in the constitutions of the Member States](#), EPRS, European Parliament, February 2000: Even though southern European constitutions might sound like they are guaranteeing individual rights ('Everyone shall have the right to...'), these are rarely enforceable and are ultimately treated as an instruction to the State to initiate measures that enable the citizen to exercise the right concerned; J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den ,neuen' Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren', in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105.

⁶⁸ J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den ,neuen' Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren', in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105; C. Ladenburger, 'Artikel 52 GRCh', in P.J. Tettinger and K. Stern, *Kölner Gemeinschaftskommentar zur Europäischen GRCh*, C.H.Beck, 2006, paras. 85-87; [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, pp. 32-33; T. von Danwitz and K. Paraschas, [A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#), *Fordham International Law Journal*, Vol. 35(5), 2017, p. 1410-1413.

⁶⁹ On the rationale, see *mutatis mutandis*, D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, p. 590 and pp. 592-593; W. Rübner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 688-693; J. Iliopoulos-Strangas, 'Soziale Grundrechte', in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte VI/1*, C.F. Müller, 27 Mai 2010, pp. 321-335.

⁷⁰ [The evolution of human rights](#), Council of Europe website. J. Iliopoulos-Strangas, 'Soziale Grundrechte', in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte VI/1*, C.F. Müller, 27 Mai 2010, p. 322 et seq.; [The impact of algorithms for online content filtering or moderation](#), Policy Department for Citizens' Rights and Constitutional Affairs, European Parliament, September 2020, pp. 55-56 as regards a positive right to protection of freedom of speech against third-parties.

⁷¹ O. Pollicino, [Esame in sede referente dei DDL 1317 e 1561 \(diritto di accesso ad Internet\)](#), medialaws, 13 March 2015, and O. Pollicino, [The Right to Internet Access: Quid iuris?](#), in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 271 and 274 et seq. suggests that a justiciable social right to Internet access could be introduced in Title II of the Italian constitution.

3.1.3. Fleshing out the scope – A case study

Without claiming to be exhaustive, this section explores one possible avenue⁷² to devise the scope of such a right, in particular in order to respond to the widespread demand for *universal connectivity as a means to promote social and economic participation*. In view of shared policy objectives,⁷³ inspiration as regards the details may be drawn from the German constitutional provision on public telecommunication services, Article 87f of the Basic Law, the European universal (broadband) service provisions, Articles 84-92 of the European Electronic Communications Code (Directive (EU) 2018/1972, EECC), and the non-binding No 20 of the European Pillar of Social Rights. Although the (binding) EECC and Basic Law provisions impose obligations on the State rather than provide residents with (prima facie) justiciable rights,⁷⁴ the underlying challenge of balancing the universal services policy objective with budgetary interests, while simultaneously safeguarding market competition,⁷⁵ are consistent and the rationale may be carried over.⁷⁶ A right to internet access must be devised with a view to

Article 87f of the German Basic Law

(1) In accordance with a federal law requiring the consent of the Bundesrat, the Federation shall **ensure the availability of adequate and appropriate** postal and **telecommunications services throughout the federal territory**.

(2) Services within the meaning of paragraph (1) of this Article shall be **provided as a matter of private enterprise** by the firms succeeding to the special trust Deutsche Bundespost and by other private providers. [...]

(bold added for emphasis)

⁷² The Portuguese (Article 35(6) of the Portuguese constitution) and Greek (Article 5A(2) of the Greek constitution) models might well be another way forward. Additionally, a variety of actors have suggested internet bills of rights containing access provisions, see L. Gill et al., [Towards digital constitutionalism? Mapping attempts to craft an internet bill of rights](#), Berkman Center Research Publication No 2015-15, 9 November 2015, p. 16 et seq., and L. Gill et al., [Pinpoint Version Digital Bills of Rights Matrix](#) ('right to access').

⁷³ Recitals 212-213 of the [EECC](#) as well as the explanatory memorandum of the German EECC transposition draft act, [TKG-Novelle-E](#), p. 348-349; Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 72; Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 201 final](#), European Commission, 26 April 2017, pp. 73-75.

⁷⁴ The German constitutional provision on public telecommunications services is conceived as a state objective ('Staatsziel'), see M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, paras. 62-63 and Judgment in [Case 8 A 104/10](#), High Administrative Court Münster, 11 September 2012, para. 72 et seq. The European universal (broadband) service provisions do not explicitly guarantee a right to benefit individuals, but rather impose obligations on Member States. However, 'it is clear from the settled case law of the Court that, whenever the provisions of a directive appear, so far as their subject matter is concerned, to be unconditional and sufficiently precise, they may be relied upon before the national courts by individuals against the State where the latter has failed to implement the directive in domestic law by the end of the period prescribed or where it has failed to implement the directive correctly', see Judgment in [Case C-282/10, Dominguez](#), CJEU, 24 January 2012, para. 33 and Section '3.3.3. European Union level'. To what extent individuals might be able to derive a claim to internet access on the grounds of a right to equal treatment by the administration is uncertain.

⁷⁵ See Recitals 23, 29, 210, 229-230 of the [EECC](#). While economic concerns may not be at the forefront of, for instance, human rights debates, excessive interventions in the market may frustrate human rights objectives and should therefore be taken into account.

⁷⁶ Communication on A Quality Framework for Services of General Interest in Europe, [COM\(2011\) 900 final](#), European Commission, 20 December 2011, p. 9: 'The sectoral legislation adopted at EU level has always carefully balanced the need to increase competition and the use of market mechanisms with the need to guarantee that every citizen continues to have access to essential services of high quality at prices that they can afford. This has been the case, for instance, in the network industries from telecommunications and postal services to transport and energy.' See p. 12 for details on electronic communications sector. In the same vein, see the communication on Universal service in e-communications, [COM\(2011\) 795 final](#), European Commission, 23 November 2011, p. 9 et seq.; [Telekommunikation 2017: Auf Wettbewerb bauen!](#), Sondergutachten 78, German Monopolies Commission, 2017, p. 84 highlights that the policy objective of 'connectivity' is now explicitly mentioned in the EECC.

the corollary duties of the state,⁷⁷ much like those stemming from public service provisions. Consequently, these provisions may serve to showcase design features and to draw attention to pertinent conceptual challenges. Additionally, juxtaposing their approaches and rationales unveils insights for the design of a fundamental right to internet access. In accordance with the Janus-like nature of this envisioned right, i.e. simultaneously presenting an entitlement to the benefit of individuals and a corresponding obligation on governments, the following sections first investigate the prescription of viable obligations on governments and subsequently how this might be dovetailed with entitlements of the individual to produce a coherent right.

Article 84 of the EEC

1. Member States shall ensure that **all consumers in their territories** have access at an **affordable** price, in light of specific national conditions, to an available **adequate broadband internet access service and to voice communications services** at the **quality specified in their territories**, including the underlying **connection, at a fixed location**.

2. In addition, Member States may also ensure the affordability of the services referred to in paragraph 1 that are **not provided at a fixed location** where they consider this to be necessary to ensure consumers' **full social and economic participation in society**.

3. Each Member State shall, in light of **national conditions** and the **minimum bandwidth enjoyed by the majority of consumers** within the territory of that Member State, and taking into account the BEREC report on best practices, define the **adequate broadband** internet access service for the purposes of paragraph 1 with a view to **ensuring the bandwidth necessary for social and economic participation in society**. The **adequate broadband** internet access service shall be capable of delivering the bandwidth necessary for supporting at least the **minimum set of services** set out in Annex V. [...]

(bold added for emphasis)

The obligations perspective

Both the German constitutional provision and the EEC provisions i) set more specific and operational objectives to ensure participation (through minimum universal connectivity), and ii) delimit means available to the state for accomplishing these goals (regulatory instruments).

(i) The German constitutional provision only vaguely⁷⁸ outlines minimum performance requirements for telecommunication services, such as internet services ('adequate and appropriate'), whereas the universal service provisions stipulate a more specific, but nevertheless dynamic, baseline. Several aspects are worth noting here:

- Both the German constitutional provision and the EEC contain performance baselines, suggesting that merely ensuring access to infrastructure is not sufficient. An internet access is only meaningful if a certain performance threshold is satisfied. Additionally, since disadvantaged groups would only subscribe to internet services within their means, both provisions ensure the affordability of baseline services. Similarly, attempts at introducing a right to internet access should address performance and affordability (see 4th item for details).

⁷⁷ See [Fact Sheet No 16, The Committee on Economic, Social and Cultural Rights](#), OHCHR, p. 4: 'Any analysis of obligations relating to economic, social and cultural rights cannot be isolated from the obligations inherent in securing the individual entitlements of the beneficiaries of the right(s) in question.'

⁷⁸ Not only is the wording vague, but the legislator also holds extensive discretion in specifying the details; M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 65; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, p. 195; K. Cannivé, *Infrastrukturgewährleistung in der Telekommunikation zwischen Staat und Markt*, Duncker & Humblot, 2001, p. 65 and 166; B. Holznagel and H. Beine, 'Rechtsrahmen staatlicher Breitbandförderung', *Multimedia und Recht*, Vol. 18(9), 2015, pp. 568-569.

- Both approaches oblige the State to provide for a basic rather than for an 'optimal' level of internet services. They ensure that no one is left behind, rather than boost next-generation connectivity.⁷⁹ While more ambitious targets may be considered when devising a novel standalone right to broadband, the substantial investment costs,⁸⁰ profitability concerns,⁸¹ competition-distorting effects,⁸² socioeconomic disparities among regions, and the interplay with other fundamental rights and principles⁸³ must be taken into account. To pre-empt disputes over the scope of the mandate,⁸⁴ it would be prudent to clarify whether governments may provide for an internet service that outperforms the baseline.
- Both baselines are sensitive to socioeconomic and regional disparities and technological progress. Likewise, a fundamental right should be future-proof in that it provides for a dynamic rather than a static baseline. The legislators and administrations would be left with the responsibility to (inter alia numerically) specify performance parameters for the industry and monitor as well as adapt the operational threshold when necessary.⁸⁵ This approach would however leave individuals with substantial uncertainty regarding their fundamentally guaranteed entitlements and may deter them from challenging administrative decisions and regulations.
- Drawing on the provisions, baseline criteria might include qualitative 'adequacy', quantitative 'availability' and 'affordability'. Adequate broadband might be determined by

⁷⁹ [Entwurf eines Gesetzes zur Änderung des Grundgesetzes, BT Drucksache 12/7269](#), Bundesregierung and Bundesministerium für Post und Telekommunikation (BMPT), 14 April 1994, p.5; K. Cannivé, *Infrastrukturgewährleistung in der Telekommunikation zwischen Staat und Markt*, Duncker & Humblot, 2001, p. 64; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, p. 165 and pp. 196-200; M. Möstl, 'Artikel. 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C. H. Beck, August 2020, paras. 5-6 and 66, clarifies that Article 87f of the Basic Law is only currently interpreted in this way, but that the provision may be open to a more interventionist interpretation.

⁸⁰ Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 78-80.

⁸¹ [Staatliches Augenmaß beim Netzausbau](#), 11. Sektorgutachten Telekommunikation (2019), German Monopolies Commission, pp. 17-21.

⁸² [Investitionsanreize stärken, Wettbewerb sichern](#), Sondergutachten 61, Telekommunikation 2011, German Monopolies Commission, pp. 86-87; [Rechtlich abgesicherter Anspruch auf schnelles Internet: Gutachten stellt sinnvolle Umsetzungsszenarien vor](#), German Broadband Association (BREKO); See also T. Fetzer, 'Wettbewerb und Regulierung auf dem Weg in die Gigabit-Gesellschaft', in J. Kühling and D. Zimmer, *Neue Gemeinwohlherausforderungen – Konsequenzen für Wettbewerbsrecht und Regulierung*, Nomos, 2020, p. 85.

⁸³ In this context, the competing rights and objectives such as the freedom to conduct a business of providers (Article 16 of the CFR) as well as economic objectives such as the promotion of a highly competitive social market economy (Article 3(3) of the TEU) and the liberalisation of the telecommunications sectors (see Article 106(1) of the TFEU and Recital 210 of the EECC) should be taken into account. Conversely, efforts to introduce a right to internet access may be bolstered by the social underpinnings of Article 36 of the CFR, Article 14 of the TFEU, Article 106(2) of the TFEU and Protocol No 26 on Services of General Interest. See also the Communication on A Quality Framework for Services of General Interest in Europe, [COM\(2011\) 900 final](#), European Commission, 20 December 2011.

⁸⁴ M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 66; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, pp. 197-198.

⁸⁵ By default, Member States are responsible for the implementation of policies decided by the EU (Articles 4(3) TEU and 291(1) TFEU), and the principles of conferral and subsidiarity present thresholds for EU involvement; According to T. Fetzer, 'Wettbewerb und Regulierung auf dem Weg in die Gigabit-Gesellschaft', in J. Kühling and D. Zimmer, *Neue Gemeinwohlherausforderungen – Konsequenzen für Wettbewerbsrecht und Regulierung*, Nomos, 2020, p. 69 (85), very strict performance requirements might be imposed in a gigabit society, where performance disruptions would endanger lives.

the support of at least a set of minimum services.⁸⁶ Additionally, 'national conditions and the minimum bandwidth enjoyed by the majority of consumers' may provide criteria for defining the bandwidth necessary for social and economic participation in society.⁸⁷ Reference points for the affordability might be the average price, connection expenditures, and the average net income per household.⁸⁸ It is debatable whether subscription fees should be uniform across the territory.⁸⁹ Depending on how detailed and flexible⁹⁰ the baseline criteria are laid down, governments will be left with more or less clear instructions and, conversely, more or less discretion. While vague wording entails uncertainty and requires the gradual development of specific entitlements through case law, it would make the provision future-proof.

- Unlike the German constitutional provision ('telecommunications services throughout the federal territory'), the EEC provisions specify the place of performance ('at a fixed location'⁹¹), but leave it to the Member States to decide whether they want to provide for the affordability of wireless technologies. The German EEC transposition act (TKG-Novelle) interprets 'a fixed location' as the primary residence and place of business of the end user.⁹² While guaranteeing internet at a 'fixed location' provides the beneficiary with certainty, it is likely not future-proof and too specific to serve as a blueprint for a fundamental provision.⁹³
- Both provisions are more or less technology-neutral in their wording. While the German constitutional provision speaks of 'telecommunication services', the EEC provisions aim to ensure the availability of 'broadband'. A compromise wording might refer to telecommunication services and mention 'internet' as a child technology thereof. In this case, implications for other telecommunication services would need to be taken into account.

ii) The German constitutional provision does not prescribe specific means (regulatory instruments) to effectuate the ends (minimum universal connectivity),⁹⁴ while the universal service provisions provide for specific means. According to Article 86 of the EEC, the EU Member States may impose universal service obligations (USOs) on internet providers or sets of providers, which are then

⁸⁶ In Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, p. 9, 11, Tech4i2 Ltd et al. assessed these services would require a download bandwidth of 9.6 Mbps in 2020. For more information, see footnote 120.

⁸⁷ Article 84(3) of the [EECC](#); Possibly, active users per household may play a role.

⁸⁸ See the explanatory memorandum of the [TKG-Novelle-E](#) p. 353. For more details, see: Report on Member States' best practices to support the defining of adequate broadband internet access service, [BoR \(19\) 260](#), BEREC, 6 December 2019, pp. 26-28; Report on the outcome of the public consultation on the draft BEREC Report on Member States' best practices to support the defining of adequate broadband internet access service, [BoR \(20\) 98](#), BEREC, 11 June 2020, p. 14; Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 94-101.

⁸⁹ M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 71.

⁹⁰ On the discretion left to governments see M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 65; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, p. 195; T. Schmitt, *Die Bedarfsplanung von Infrastrukturen als Regulierungsinstrument*, Mohr Siebeck, 2015, pp. 224-225; K. Cannivé, *Infrastrukturergewährleistung in der Telekommunikation zwischen Staat und Markt*, Duncker & Humblot, 2001, p. 65 and 166; B. Holznagel and H. Beine, 'Rechtsrahmen staatlicher Breibandförderung', *Multimedia und Recht*, Vol. 18(9), 2015, Vol. 18(9), 2015, pp. 568-569.

⁹¹ Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 91-93.

⁹² Section 156(1) TKG-Novelle, [BR-Drs. 325/21](#), 23 April 2021, and the explanatory memorandum of the [TKG-Novelle-E](#) p. 349.

⁹³ See L. Jasmontaite and P. De Hert, '[Access to the internet in the EU](#)', Brussels Privacy Hub Working Paper Vol. 6(19), February 2020, p. 8, who suggest extending the universal service provisions to a mobile broadband connection.

⁹⁴ Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 63 and paras. 83-87.

required to meet all the reasonable requests for universal broadband services.⁹⁵ However, this instrument may only be deployed under certain circumstances. It is only available on the condition that universal services 'cannot be ensured under normal commercial circumstances or through other potential public policy tools'.⁹⁶ Other public policy tools include 'financial instruments such as those available under the European Fund for Strategic Investments and Connecting Europe Facility, the use of public funding from the European structural and investment funds, attaching coverage obligations to rights of use for radio spectrum to support the deployment of broadband networks in less densely populated areas and public investment in accordance with Union State aid rules'.⁹⁷ Article 86 of the EEC and Recitals 229-230 of the EEC provide for the subsidiarity of the USO instrument as regards 'more cost-effective and less market-distortive' instruments, as an expression of the EEC's objective to promote 'effective and fair competition' (Recital 23 of the EEC), including minimising market distortions (e.g. Articles 85(5) and 86(2) of the EEC). Essentially, these intricate rules of application demonstrate that any prescriptions on the states' means of performance must be carefully developed in full consideration of their legal and economic impacts. Particularly, the implications for rights – such as the 'freedom to conduct a business' (Article 16 of the CFR)⁹⁸ – as well as fundamental economic objectives⁹⁹ – such as the promotion of a 'highly competitive social market economy' (Article 3(3) of the TEU) and the liberalisation¹⁰⁰ of the telecommunications sector (see Article 106(1) of the TFEU and Recital 210 of the EEC) – should be taken into account.¹⁰¹

In contrast to EEC-related provisions, the German constitutional public service provision remains largely silent on the regulatory instruments available to meet the minimum broadband requirements. It 'simply' enshrines the primacy of providing internet access 'as a matter of private enterprise'. This commitment to privatisation and competition, *in principle*, prevents the German Federal Government from directly providing internet services and thereby restricts its actions to regulatory intervention (coupled with a compensation scheme).¹⁰² Further requirements stemming

⁹⁵ In turn, these providers may seek compensation according to the domestic transposition provisions of Article 89 of the [EEC](#).

⁹⁶ [Rechtliche Herausforderungen bei der Schaffung von Anreizen fuer einen flächendeckende Ausbau von Glasfaserinfrastrukturen](#), Z30/SEV/288.3/1784/DG13, German Federal Ministry of Transport and Digital Infrastructure (BMVI), 25 July 2019, p. 51; [Ausbauanreize für Glasfaser sowie ausgewählte infrastrukturbezogene Rechtsfragen zur Umsetzung des europäischen Kodex für die elektronische Kommunikation](#), pp. 38-39; A. Neumann, [Optionen für die Ausgestaltung eines rechtlich abgesicherten Anspruchs auf schnelles Internet aus telekommunikationsrechtlicher Sicht](#), p. 22.

⁹⁷ Recital 229 of the [EEC](#).

⁹⁸ K. Cannivé, *Infrastrukturgewährleistung in der Telekommunikation zwischen Staat und Markt*, Duncker & Humblot, 2001, p. 70; W. Werner, [Recht auf schnelles Internet in Zeiten von SARS-CoV-2](#), *Neue Zeitschrift für Verwaltungsrecht – Extra*, Vol. 39(22), 2020, p. 5.

⁹⁹ While economic concerns may not be at the forefront of, for instance, human rights debates, excessive interventions in the market may frustrate human rights objectives and should therefore be taken into account.

¹⁰⁰ See the Communication on A Quality Framework for Services of General Interest in Europe, [COM\(2011\) 900 final](#), European Commission, 20 December 2011, p. 5.

¹⁰¹ Conversely, social and general interests underpinning Article 36 of the CFR, Article 14 of the TFEU, Article 106(2) of the TFEU and Protocol No 26 Services of General Interest may bolster a more interventionist approach. See H.-W. Micklitz, [Universal Services: Nucleus for a Social European Private Law](#), EUI WP Law 2009/12, 2009, pp. 2-9 on the interplay of universal service obligations, services of general economic interest and social services of general interest.

¹⁰² Second Senate of the German Federal Constitutional Court, [2 BvL 4/09](#), 17 January 2012, para. 71; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, p. 196; M. Möstl, 'Artikel 87f GG', in T. Maunz and G. Dürig, *GG-Kommentar*, C.H.Beck, August 2020, para. 5-6 clarifies that Article 87f of the Basic Law is only currently interpreted in this way, but that the provision may be open to a more interventionist interpretation; M. Cornils, 'Geschichte und Entwicklung des deutschen Telekommunikationsrechts', in M. Geppert and R. Schütz, *Beck'scher TKG Kommentar*, Teil B., Einl., A., para. 21-24; M. Cornils, 'Staatliche Infrastrukturverantwortung und kontingente Marktvoraussetzungen', in *Archiv des öffentlichen Rechts*, Vol. 131(3), 2006, 378; K. Cannivé, *Infrastrukturgewährleistung in der Telekommunikation zwischen*

from the economic order enshrined in the German Basic Law are developed through interpretation.¹⁰³ Since circumstances might require a flexible approach, it is atypical for fundamental laws to explicitly codify an intricate regime governing the hierarchy of regulatory instruments. A high level of specificity is more familiar from sector-specific regulatory regimes. Ultimately, this should be kept in mind when devising a standalone right to internet access. Since the legislator would need to take into account similar fundamental economic objectives when devising the novel right, it would likely entitle the individual to demand that the state *ensure* connectivity, rather than *fulfil* the obligation itself.¹⁰⁴

The rights perspective

Since the aforementioned considerations derive from pre-existing laws, i.e. preconceived notions, they do not exhaustively speak to i) the individual's entitlements correlating with the obligation on the state, ii) other entitlements comprised within the scope and iii) the interplay of the envisioned right with pre-existing rights.

i) The individual's entitlements should integrate with the obligations imposed on the state and the respective legal framework in order to form a coherent right. The entitlements determine the legal relations between beneficiaries, i.e. the individuals, the state and related actors, e.g. providers. It is understood that fundamental laws are not modelled on

No 20 of the European Pillar of Social Rights

Everyone has the **right** to access essential services of **good quality**, including water, sanitation, energy, transport, financial services and **digital communications**. Support for access to such services shall be available for those in need.

(bold added for emphasis)

legislative acts and that they follow a different logic,¹⁰⁵ but recent deliberations and proposals on a sub-constitutional level may shed light on how best (not) to dovetail obligations and entitlements. Against the backdrop of two studies,¹⁰⁶ the German EECC transposition act (TKG-Novelle) grants individuals a right to enter into a contract with an internet service provider designated by the

Staat und Markt, Duncker & Humblot, 2001, pp. 68-81; E. Peuker, *Verfassungswandel durch Digitalisierung*, Mohr Siebeck, 2020, p. 261. On the transformation of the role of the state from provider to enabler, see C. Franzius: [Der Gewährleistungsstaat](#) and C. Franzius: [Die europäische Dimension des Gewährleistungsstaates](#).

¹⁰³ See for instance [Optionen für die Ausgestaltung eines rechtlich abgesicherten Anspruchs auf schnelles Internet aus telekommunikationsrechtlicher Sicht](#), German Broadband Association (BREKO), 1 February 2019, pp. 8-14; *Telekommunikativer Breitbandausbau in Form des Universaldienstes*, [WD 5 – 3000 – 065/2011](#), Bundestag WD, 29 March 2011, pp. 7-11; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, pp. 189-204.

¹⁰⁴ See [Fact Sheet No.16, The Committee on Economic, Social and Cultural Rights](#), OHCHR, p. 4: 'Any analysis of obligations relating to economic, social and cultural rights cannot be isolated from the obligations inherent in securing the individual entitlements of the beneficiaries of the right(s) in question. Most frequently, obligations are divided into "layers" reflecting duties to (a) respect, (b) protect, (c) promote, and (d) fulfil each of the rights contained in the Covenant.'

¹⁰⁵ e.g. J. Nickel, [Human Rights](#), Stanford Encyclopaedia of Philosophy, 11 April 2019; S. van Duffel, '[Moral Philosophy](#)', in D. Shelton, *The Oxford Handbook of International Human Rights Law*, December 2013, pp. 32-53; B. van der Sloot, [Legal Fundamentalism: Is Data Protection Really a Fundamental Right](#), in: R. Leenes et al, *Data Protection and Privacy: (In)visibilities and Infrastructures*, Springer, 2017, pp. 13-19.

¹⁰⁶ [Rechtliche Herausforderungen bei der Schaffung von Anreizen fuer einen flächendeckende Ausbau von Glasfaserinfrastrukturen](#), Z30/SEV/288.3/1784/DG13, German Federal Ministry of Transport and Digital Infrastructure (BMVI), 25 July 2019; [Optionen für die Ausgestaltung eines rechtlich abgesicherten Anspruchs auf schnelles Internet aus telekommunikationsrechtlicher Sicht](#), German Broadband Association (BREKO), 1 February 2019; B. Holzngel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', *Verbraucher und Recht*, Vol. 34(12), 2019, pp. 441-442.

state.¹⁰⁷ It is unlikely that this model would be introduced on a fundamental level. Not only would this model grant a largely unprecedented, *subjective* (arguably) *social* right to internet access¹⁰⁸ but it would also explicitly enable the beneficiary to invoke a fundamental right *in relation to another private entity*.¹⁰⁹ Both phenomena are controversial and applied restrictively (see preceding footnotes). The introduction of an *explicit* right to enter into a contract with a private entity would likely present a break with tradition in many fundamental laws. Additionally, the EU co-legislators¹¹⁰ and Member State governments should be left with the choice on how to achieve the necessary level of connectivity (see preceding subsection). The fundamental access right could be modelled on Article 87f of the Basic Law and No 20 of the European Pillar of Social Rights. However, instead of merely placing an obligation on the state (see Article 87f of the Basic Law), the provision may explicitly provide the individual with a *right* to internet access.¹¹¹ The model provisions might simply

¹⁰⁷ Section 156(1) of the [TKG-Novelle](#), grants end users a right to the supply of an internet connection against providers designated according to Sec. 161(1), (2) or (3) of the TKG-Novelle. In the explanatory memorandum of the [TKG-Novelle-E](#) on p. 349 et seq. the BReg, BMWi and BMVI specify that this right translates into an entitlement to the conclusion of a contract with a designated provider. The German Federal Network Agency ([BNetzA](#)), shall compensate the providers designated under Section 161(2) or (3) of the TKG-Novelle at the end of a calendar year, provided that the net costs represent an unreasonable burden (Section 162 of the TKG-Novelle et seq.). In the public consultation, the German Broadband Association (BREKO) [criticised](#) that a right to Internet access conflicts with Article 86 of the [EECC](#), which provides for universal service mechanism as a last resort ('ultima ratio'). The enactment of a right to internet access by 1 January 2021 was [agreed on](#) by the ruling coalition on 14 March 2018 and later linked to the transposition of the [EECC](#) in the [key issue paper on the national telecommunications reform](#) of BMWi and the BMVI, p. 22. This approach was [criticised](#) by BREKO as early as 21 February 2019. For doctrinal context, see H.-W. Micklitz, [Universal Services: Nucleus for a Social European Private Law](#), EUI WP Law 2009/12, and B. Holznapel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', in *Verbraucher und Recht*, Vol. 34(12), 2019, p. 441 et seq.

¹⁰⁸ See Section '3.1.2. Lessons learned from academia' and respective footnotes; As regards the inclusion of subjective right to social services, see [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 16 et seq.; T. von Danwitz and K. Paraschas, '[A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#)', *Fordham International Law Journal*, Vol. 35(5), 2017, pp. 1411-1413; J. Iliopoulos-Strangas, 'Soziale Grundrechte', in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte VI/1*, C.F. Müller, 27 Mai 2010, pp. 321-335; D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, pp. 587-590 and p. 594; W. Rübner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 683-688.

¹⁰⁹ On the horizontal direct effect of the CFR, see E. Frantziou, '[The Horizontal Effect of the Charter](#)', *Cambridge Yearbook of European Legal Studies*, Vol. 22, 2020, especially p. 214 as regards the interplay with social rights; N. Jääskinen, 'Fundamental Social Rights in the Charter - Are They Rights? Are They Fundamental?', in S. Peers et al., *The EU Charter of Fundamental Rights: A Commentary*, Hart Publishing, 2014, para. 61.36; T. von Danwitz and K. Paraschas, '[A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#)', *Fordham International Law Journal*, Vol. 35(5), 2017, pp. 1423-1425; A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-164 (esp. pp. 117-118); [Internet: case-law of the European Court of Human Rights](#), ECtHR Research Division, June 2015, p. 42 and pp. 47-53; H.-J. Papier in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 1336-1342.

¹¹⁰ In the EU context, Member States are by default responsible for the implementation of policies decided by the EU (Articles 4(3) of the TEU and 291(1) of the TFEU), and the principles of conferral and subsidiarity present thresholds for EU involvement in executive matters; For details on the Union's executive powers, see H. Mildebrath and R. Mańko, [Complementary executive capacity](#), Briefing, EPRS, European Parliament, February 2021.

¹¹¹ Despite this wording, courts may interpret such 'rights' as indirectly enforceable principles. Conversely, this formulation would also allow courts to derive subjective rights, see, *mutatis mutandis*, D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, p. 593 and W. Rübner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, p. 692. On subjective rights, see T. von Danwitz and K. Paraschas, '[A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#)', *Fordham International Law Journal*, Vol. 35(5), 2017, pp. 1410-1414; [Explanations relating to the Charter of Fundamental Rights](#), Praesidium of the European Convention, 14 December 2007, Explanation on Article 52, point 2; [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, pp. 16-18.

be merged stating that everyone has the right to access and use an internet connection of adequate quality, necessary for social and economic participation in society.¹¹² To enhance its effectiveness, the provision might instruct legislators to enact an implementing framework that i) provides the individual with an effective entitlement to internet access and ii) measures up to the fundamentally protected guarantees before courts.¹¹³ This clarification leaves the implementing legislator with a wide margin of appreciation when devising the access framework, but ensures that individuals may challenge implementing laws and administrative actions on grounds that they fail to ensure the fundamentally protected minimum level of connectivity.¹¹⁴ While the judiciary may quantify the fundamentally protected minimum level of connectivity in its case law, it must also respect the wide margin of appreciation of the legislature.¹¹⁵ In light of the legislature's wide margin of appreciation,

¹¹² Affordability would present an implicit requirement. The Portuguese (Article 35(6) of the Portuguese constitution) and Greek (Article 5A(2) of the Greek constitution) models might well be another way forward. Additionally, a variety of actors have suggested internet bills of rights containing access provisions, see L. Gill et al., [Towards digital constitutionalism? Mapping attempts to craft an internet bill of rights](#), Berkman Center Research Publication No 2015-15, 9 November 2015, p. 16 et seq. and L. Gill et al., [Pinpoint Version Digital Bills of Rights Matrix](#) ('right to access').

¹¹³ Like the term 'right' (see fn. 111), this would not preclude courts from interpreting the provision as a principle. The combination of a mandate to enact an access framework and the framework's susceptibility to judicial review on the basis of CFR principles would nevertheless provide for a judicially controlled minimum access (see N. Jääskinen, 'Fundamental Social Rights in the Charter - Are They Rights? Are They Fundamental?', in S. Peers et al., *The EU Charter of Fundamental Rights: A Commentary*, Hart Publishing, 2014, para 61.36). However, individuals and their legal counsels might find it more challenging or impossible to effectively invoke non-subjective social rights in some jurisdictions and where Member States refrain entirely from legislative or administrative actions (see [Explanations relating to the Charter of Fundamental Rights](#), Praesidium of the European Convention, 14 December 2007, Explanation on Article 52, point 2; C. Ladenburger, 'Artikel 52 GRCh', in P.J. Tettinger and K. Stern, *Kölner Gemeinschaftskommentar zur Europäischen GRCh*, C.H.Beck, 2006, paras. 85-87; D. Hahn, *Staatszielbestimmungen im integrierten Bundesstaat*, Duncker & Humblot, 2010, pp. 97-105). While it may be hard to reconcile subjective social rights with the traditions of fundamental laws, they would promote effectiveness, legal certainty and possibly more consistency across Member States. According to O. De Schutter, [The Charter of Fundamental Rights as a Social Rights Charter](#), CRIDHO Working Paper 2018/4, July 2018, pp. 17-20, a subjective right may require specific positive actions from the legislator, while principles would leave him with an extensive margin of appreciation. Ultimately, a new standalone right to internet access could be introduced in the CFR and conceived as a principle, a subjective right or an unclassified provision. In the latter case, the classification is left to the courts (on interpretation guidelines, see C. Ladenburger, 'Artikel 52 GRCh', in P.J. Tettinger and K. Stern, *Kölner Gemeinschaftskommentar zur Europäischen GRCh*, C.H.Beck, 2006, paras. 96-101; O. De Schutter, 'Article 52 CFR', in EU Network of Independent Experts on Fundamental Rights, *Commentary of the Charter of Fundamental Rights of the European Union*, 2006, p. 408 classifies Article 36 CFR, i.e. the CFR provision on access to services of general economic interest, as a principle). It should be noted that where the EU does not already have the competence to provide for or (implicitly) presuppose that natural or legal persons may take actions online, the Charter would not apply (see Article 51 of the CFR and Section '3.3.3. European Union level' including fn. 218). In the ECHR context, principles are not distinguished from rights, but the subject matter of social rights best corresponds to the European Social Charter, which is partially seen as programmatic. Nevertheless, also the ECHR could present the bedrock for social rights. Under the convention, social rights, which necessitate positive measures for their fulfilment and may require progressive realisation by the state, provide states with a wide margin of appreciation with regard to the means chosen to comply with the obligations. (See Section '3.3.2. on Council of Europe level').

¹¹⁴ N. Jääskinen, 'Fundamental Social Rights in the Charter - Are They Rights? Are They Fundamental?', in S. Peers et al., *The EU Charter of Fundamental Rights: A Commentary*, Hart Publishing, 2014, para 61.36; T. von Danwitz and K. Paraschas, [A Fresh Start for the Charter Fundamental Questions on the Application of the European Charter of Fundamental Rights](#), *Fordham International Law Journal*, Vol. 35(5), 2017, pp. 1410-1414; [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, pp. 32-33.

¹¹⁵ To protect against a shift in institutional competences, the rights' scope may explicitly be limited to cover only 'manifest' undersupply and 'manifest' errors in law. This would also ensure that courts are not overburdened with repeatedly setting technical standards for a multifarious subject matter that is subject to constant societal change (see Section '3.1.3. Fleshing out the scope - a case study', Subsection 'The obligations perspective', Item 4). This would, however, strictly limit its justiciability and expose the right to some of the critique that is being brought forth against the limited justiciability of principles (O. De Schutter, [The Charter of Fundamental Rights as a Social Rights Charter](#), CRIDHO Working Paper 2018/4, July 2018, pp. 17-20).

investment costs,¹¹⁶ profitability concerns,¹¹⁷ competition-distorting effects,¹¹⁸ and competing fundamental rights and principles,¹¹⁹ courts would exercise restraint in defining what presents an *adequate* connection. Accordingly, the right would likely not guarantee connectivity levels necessary for the use of cutting-edge technologies, but rather minimum connectivity for socioeconomic participation. In line with estimates on performance requirements necessary for basic services enabling socioeconomic participation, the minimum connectivity threshold might currently be fixed at a download speed of about 10 Mbps.¹²⁰ While this design promotes consistency with the doctrine of fundamental laws as much as possible, it may (arguably) fall short of individuals' expectations for faster internet. Nevertheless, such a right would prompt legislators and administrations to act and would enable individuals to challenge these actions on the grounds of fundamental provisions before courts.¹²¹ The benefits of this solution include that it takes into account the traditions of fundamental laws as much as possible, that it can accommodate technological progress, socioeconomic change and doctrinal development, and that it applies regulatory pressure on states. The main drawbacks are that individuals may be disappointed in their expectations and will be faced with uncertainty as regards their specific entitlements until case law provides guidance.

¹¹⁶ Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 78-80.

¹¹⁷ [Staatliches Augenmaß beim Netzausbau](#), 11. Sektorgutachten Telekommunikation (2019), German Monopolies Commission, pp. 17-21.

¹¹⁸ [Investitionsanreize stärken, Wettbewerb sichern](#), Sondergutachten 61, Telekommunikation 2011, German Monopolies Commission, pp. 86-87; German Broadband Association (BREKO), [Rechtlich abgesicherter Anspruch auf schnelles Internet: Gutachten stellt sinnvolle Umsetzungsszenarien vor](#); See also T. Fetzner, 'Wettbewerb und Regulierung auf dem Weg in die Gigabit-Gesellschaft', in J. Kühling and D. Zimmer, *Neue Gemeinwohl-herausforderungen – Konsequenzen für Wettbewerbsrecht und Regulierung*, Nomos, 2020, p. 85.

¹¹⁹ This may include the freedom to conduct a business of providers (Article 16 of the CFR) as well as economic objectives such as the promotion of a highly competitive social market economy (Article 3(3) of the TEU) and the liberalisation of the telecommunications sectors (see Article 106(1) of the TFEU and Recital 210 of the [EECC](#)).

¹²⁰ Clearly, the question of which applications must be supported by the internet connection provides ample opportunities for discussion. Where courts would fix the threshold remains uncertain. In the 2016 Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, p. 9 and p. 11, Tech4i2 Ltd et al. estimated that a set of minimum services (see Table 1) would require a download bandwidth of 9.6 Mbps in 2020. The initial German EECC transposition draft act, TKG-Novelle-E, submitted by the Federal Government to the lower house (Bundestag) [suggested](#) a minimum download speed of 10 Mbps [p. 351], Committees of the upper house (Bundesrat) [recommended](#) a minimum download speed of 30 Mbps [pp. 90-92], the Bundestag's Committee on Economic and Energy Affairs [assumes](#) that download speeds of 30 Mbps are necessary to satisfy the connectivity requirements of teleworking [p. 465] and the Left [tabled](#) a motion to fix the minimum download rate at 100 Mbps in the Bundestag [p. 3]. On 12 February 2021, the Slovenian telecoms regulator ([AKOS](#)) [decided](#) to raise the universal service broadband speed to download speeds of at least 10 Mbps. W. Werner, '[Recht auf schnelles Internet in Zeiten von SARS-CoV-2](#)', *Neue Zeitschrift für Verwaltungsrecht – Extra*, Vol. 39(22), 2020, p. 1 fixes the threshold at a download speed of 16 Mbps.

¹²¹ The rationale from B. Holznagel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', *Verbraucher und Recht*, Vol. 34(12), 2019, p. 442 and B. Holznagel and C. Vierling, 'Instrumente des Verbraucherschutzes in der Netzregulierung', in T. Brönneke et al., *Verbraucherrechtsvollzug*, Nomos, 2020, p. 83 also applies on a fundamental level.

ii) While in a first step this investigation focuses on meeting the widespread demand for a right to connectivity, other components merit similar attention. It is debatable whether the right to *meaningful* internet access should also comprise, for instance:

- a right to a certain level of network security¹²²
- a right to access digital literacy training services
- a right to the supply of a terminal device¹²³
- a right to assistive technologies (e.g. for persons with disabilities)¹²⁴
- a right to indiscriminate internet access (open internet / net neutrality)¹²⁵
- a right to access certain services *on* the internet¹²⁶
- a right to access (proportionately moderated) content

The Internet Rights and Principles Coalition (IRPC) conceived the right to access as a right that underpins all other human rights *on* the internet (freedom of expression, privacy, data protection, etc.).¹²⁷ Remarkably, their concept also requires that the internet service meets certain security and neutrality standards.¹²⁸ The implications of further extending the scope of the envisioned access right through qualifications or supplementary entitlements should be thoroughly analysed. Conversely, it is worth further investigating which limitations may be imposed on such a right to internet access.¹²⁹

¹²² W. Hoffmann-Riem, 'Freiheitsschutz in den globalen Kommunikationsinfrastrukturen', in *Juristen Zeitung*, Vol. 69(2), 2014, pp. 57-61; M. Bartsch, 'Die „Vertraulichkeit und Integrität informationstechnischer Systeme“ als sonstiges Recht nach § 823 Abs. 1 BGB', in *Computer und Recht*, Vol. 24(10), 2008, p. 613 et seq.; M. Sachs and T. Krings, 'Das neue "Grundrecht auf Gewährleistung der Vertraulichkeit und Integrität informationstechnischer Systeme"', in *Juristische Schulung*, Vol. 48(6), 2008, 481 (p. 486).

¹²³ See Decision in [Case L 6 AS 297/10 B](#), Regional Social Court North Rhine-Westphalia, 23 April 2010.

¹²⁴ C. Crawford, [Cyberplace: Defining a Right to Internet Access through Public Accommodation Law](#), *Temple Law Review*, Vol. 76(2), 2003, pp. 260-262.

¹²⁵ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 140 and 150; The OSCE's report on [Freedom of Expression on the Internet](#), p. 37 et seq., already in 2011 and Protecting Human Rights through Network Neutrality, [CMSI\(2013\)misc19E](#), Steering Committee on Media and Information Society, Council of Europe, 3-6 December 2013, in 2013 discussed net neutrality as a paradigm of the freedom of expression and information and a key enabler of human rights; Recently this topic was revisited in Recommendation on protecting and promoting the right to freedom of expression and the right to private life with regard to network neutrality, CM/Rec(2016)1, Committee of Ministers (CoE), 13 January 2016; See also J. Sluijs, [From Competition to Freedom of Expression: Introducing Article 10 ECHR in the European Network Neutrality Debate](#), in *Human Rights Law Review*, Vol 12(3), 2012, pp. 509-554.

¹²⁶ J.-U. Pille, *Meinungsmacht sozialer Netzwerke*, Nomos, 2016, pp. 360-361 and 370-378, contemplates the introduction of an obligation to contract, modelled on universal services provisions, and assumes this would be consistent with fundamental rights; in this regard, see A. Thierer, [The Perils of Classifying Social Media Platforms as Public Utilities](#), in *CommLaw Conspectus*, Vol 21(2), 2013, pp. 249-297; B. Raue, 'Meinungsfreiheit in sozialen Netzwerken', in *Juristen Zeitung*, Vol. 73(20), 2018, pp. 969-970 and D. Holznagel, 'Put-back- Ansprüche gegen soziale Netzwerke: Quo Vadis?', *Computer und Recht*, Vol. 35(8), 2019, p. 522 assume that already today an obligation to contract exist in certain cases; W. Benedek and M. Kettemann, [Freedom of Expression and the internet](#), 1st edition, Council of Europe Publishing, December 2013, p. 23.

¹²⁷ The Internet Rights and Principles Dynamic Coalition (IRPC) based at the UN Internet Governance Forum (IGF) devised the [Charter of Human Rights and Principles for the Internet](#). In L. Gill et al.'s [words](#) [p. 14], 'the Internet Governance Forum has [...] classically acted as a venue for convergence and consensus-building around Internet rights and principles, in particular through the leadership of its Dynamic Coalition on Internet Rights and Principles, formed following the Hyderabad IGF in 2008. This coalition has been responsible for drafting the 2014 *Charter of Human Rights and Principles for the Internet* and boasts a participant list of over 320 members worldwide'.

¹²⁸ 'Everyone has an equal right to access and use a *secure* and *open* internet' (emphasis added).

¹²⁹ S. Tully, [A Human Right to Access the Internet? Problems and Prospects](#), *Human Rights Law Review*, Vol. 14(2), 2014, p. 175-195; Limitations may be imposed to the detriment of individuals who repeatedly committed cybercrimes and where the effort to supply internet access is disproportionate.

Significance of an entitlement to education on digital competences: In the Human Capital DESI Report 2020, the European Commission found that 'the top reasons for not having internet access at home in 2019 remain the lack of need or interest (46 % of households without internet access in 2019), insufficient skills (44 %), equipment costs (26 %) and high cost barriers (24 %). [...] Lack of relevant skills remains by far the most important factor deterring households from having internet access at home. Moreover, given that this factor limits awareness of potential benefits from digitisation, it may also be among the reasons behind the large numbers of EU households that still claim not to have internet access at home because they do not need it.'¹³⁰

Since the European Union lacks the competences for comprehensive educational policies (Articles 165, 166 and 6(1)e of the TFEU) and positive rights were largely forgone in Article 14 of the CFR, Article 14 of the CFR does not provide individuals with a positive right to education on a specific subject (e.g. digital competences).¹³¹ Similarly, Article 2 to Protocol 1 to the ECHR is formulated in a negative way and does not extend to education on a specific topic.¹³² The ECtHR held that 'the setting and planning of the curriculum fall in principle within the competence of the Contracting States. This mainly involves questions of expediency on which it is not for the Court to rule and whose solution may legitimately vary according to the country and the era'.¹³³ If a fundamental right to internet access were recognised in the CFR or ECHR and its scope comprised ensuring digital literacy training in the school syllabus, its scope would extend beyond what is currently ensured by the fundamental right to education. The EU would only be able to give effect to this right by supporting, coordinating or supplementing the actions of Member States (Articles 165, 166 and 6(1)e of the TFEU and Article 51 of the CFR). Where Member States (voluntarily) implement such (non-harmonising and largely non-binding) EU measures they would likely not implement Union law within the meaning of Article 51(1), first sentence, of the CFR and thus the Charter would not apply.¹³⁴ Unless the EU's competences were extended, recognising such a right within the CFR would promise more than it could deliver.¹³⁵ This reasoning does not apply if such a right were recognised in the ECHR.

iii) Additional challenges arise from the delineation and interplay between the envisioned right to internet access and pre-existing rights, such as the right to freedom of expression,¹³⁶ the right to education, the right of non-discrimination¹³⁷ and the right to privacy and data protection.¹³⁸ Overlaps may arise from the extensive interpretation of pre-existing rights or a broad scope of the envisioned right to internet access. In some cases, an internet connection is a prerequisite to exercising other rights and might therefore be considered implicitly guaranteed. Conversely, an internet connection in itself is not meaningful without fairly indiscriminate access to content

¹³⁰ [Report on DESI 2020 – Human capital](#), European Commission.

¹³¹ B. Kempen, 'Artikel 14 GRCh', in P.J. Tettinger and K. Stern, *Kölner Gemeinschaftskommentar zur Europäischen GRCh*, C.H.Beck, 2006, paras. 13-15; I. Augsburg, 'Artikel 14 GRCh', in H. von der Groeben et al., *Europäisches Unionsrecht*, Nomos, 2015, para. 2; M. Simm, 'Artikel 14 GRCh', in J. Schwarze et al., *EU-Kommentar*, Nomos, 2019, para. 2; N. Bernsdorff, 'Artikel 14 GRCh', in J. Meyer and S. Hölscheidt, *Charta der Grundrechte der Europäischen Union*, Nomos, 2019, para. 12; For context see [Digest of the case-law on the right to education](#), CJEU, 14 March 2021.

¹³² [Guide on Article 2 of Protocol No 1 to the European Convention on Human Rights](#), ECtHR, 31 December 2020, p. 5, fn. 1.

¹³³ Judgment in [Case with application No 21787/93](#), *Valsamis v Greece*, ECtHR, 18 December, 1996, para. 28.

¹³⁴ A. Schwerdtfeger, 'Artikel 51 GRCh', J. Meyer and S. Hölscheidt, *Charta der Grundrechte der EU*, Nomos, 2019, para. 46; C. Latzel, 'Die Anwendungsbereiche des Unionsrechts', *Europäische Zeitschrift für Wirtschaftsrecht*, Vol. 26(17), 2015, p. 659; D. Thym, 'Die Reichweite der EU-Grundrechte-Charta – Zu viel Grundrechtsschutz?', *Neue Zeitschrift für Verwaltungsrecht*, Vol. 32(14), 2013, p. 893.

¹³⁵ On EU competences as boundaries for the application of the CFR, See Article 51 of the CFR and Section '3.3.3. European Union level'.

¹³⁶ As regards overlaps in the area of content moderation see; S. Tully, '[A Human Right to Access the Internet? Problems and Prospects](#)', *Human Rights Law Review*, Vol. 14(2), 2014, pp. 191-192; As regards the positive dimension, overlaps might occur, where prisoners demand the provision of internet access within prison facilities and an appropriate connection has yet to be established (see Section '3.1.1. Lessons learned from case law').

¹³⁷ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 178.

¹³⁸ M. Oermann, *Gewährleistung der Möglichkeit internetbasierter Kommunikation*, Nomos, 2018, pp. 141-178.

(information), a trustworthy (secure & privacy-compliant) infrastructure and digital skills (education), which suggests an inherently broad design of an *effective* right to internet access.¹³⁹ Additionally, in cases where human activities are exercised online, the characteristics of the internet ('ubiquity, asynchronicity, amplifying nature and empowering potential'¹⁴⁰) and its role in society¹⁴¹ require special attention when assessing the implications for fundamental rights. Where pre-existing rights cannot accommodate a progressive interpretation and produce inequitable results, the envisioned right to internet access may – either alone or in conjunction with other rights – provide for new interpretive approaches. These interrelations translate into legal questions of priority of application as well as on engulfing, amplifying and limiting effects among rights. These points do not need to be resolved prior to a codification, since case law typically clarifies the interplay over time.¹⁴²

Section summary: Delimiting the scope

Should one decide to model a right to internet access on Article 87f of the German Basic Law and No 20 of the European Pillar of Social Rights following these preliminary considerations, economic and doctrinal considerations would warrant a narrow scope, guaranteeing an adequate level of connectivity necessary for socioeconomic participation rather than connectivity-levels necessary for next generation applications. Nevertheless, such a fundamental right may in practice spur internet adoption and future-proof network expansion and thereby incidentally boost next generation connectivity. States would likely retain a wide margin of appreciation as regards implementing the provision. Consequently, individuals would only be able to compel Member States (by way of legal action) to provide for access where the Member States fail to provide for the fundamentally protected minimum level of connectivity. Not least due to constant societal change and the wide margin of appreciation of legislators, fixing specific thresholds would present a reoccurring challenge for courts. Due to potentially adverse effects, such as the distortion of competition, states are *in principle* restricted to ensuring connectivity through public policy tools, such as financial instruments and regulatory measures, rather than by offering services themselves. Further investigations are necessary to clarify whether the scope extends to features such as network security and network neutrality, as well as to ancillary goods and services, such as digital training services, terminal devices and access to certain services *on* the internet.

3.2. Benefits and drawbacks

Notwithstanding the uncertain scope, scholars have begun developing arguments for and against the recognition of a fundamental right to internet access. These arguments may also serve to substantiate whether the form and features of the internet as well as their broader significance for

¹³⁹ See B. Çali, 'The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 280.

¹⁴⁰ See W. Benedek and M. Kettemann, *Freedom of Expression and the internet*, 1st edition, Council of Europe Publishing, December 2013, p. 54; Particularly, the internet supports mass communication (amplification) and instantaneous and multi-sensual two-way communication, absent to other telecommunication services and broadcasting.

¹⁴¹ See [Guide on Article 10 ECHR](#), ECtHR, 31 August 2020, pp. 100-101; W. Benedek and M. Kettemann, *Freedom of Expression and the internet*, 1st edition, Council of Europe Publishing, December 2013, p. 54.

¹⁴² See ECtHR: [Guide on Article 10 ECHR](#), ECtHR, 31 August 2020, pp. 100-101 and W. Benedek and M. Kettemann, *Freedom of Expression and the internet*, 1st edition, Council of Europe Publishing, December 2013 illustrate how thematic clusters form in case law.

the individual and society meet the requirements for the codification of a right to internet access on a fundamental level.¹⁴³

- The main argument **in favour**¹⁴⁴ of emancipating a right to internet access stems from a political conception of fundamental rights and is based on the unmatched significance of the internet for the individual, its personal development and its participation in society and the knowledge-based economy. The internet also advances democracy, pluralism and other human rights.¹⁴⁵
- Another 'argument for a right of access is that without it people could not fully exercise other rights, particularly freedom of expression but also the right to online assembly or to education'.¹⁴⁶ This argument gains particular relevance where individuals are forced to rely on the internet to exercise, for instance, their right to education or free movement, such as during the coronavirus pandemic or in a future gigabit society.¹⁴⁷
- Furthermore, the internet has been subjected to censorship and control, which is why some advocate to strengthen protective measures through an emancipated, standalone, defensive right to internet access. While it is widely acknowledged that the internet may amplify¹⁴⁸ the potential harm of e.g. hate speech and disinformation, providers may abuse their gatekeeper function by excessively blocking content.
- Recently scholars developed 'a new argument supporting the recognition of access to the internet as a [...] fundamental right [...] on the basis of the number of individuals who use eGovernment services. All EU citizens should be entitled to access eGovernment services developed by public administrations without undue restrictions'.¹⁴⁹

¹⁴³ See, for instance, S. van Duffel, '[Moral Philosophy](#)', in D. Shelton, *The Oxford Handbook of International Human Rights Law*, December 2013, pp. 32-53 on the doctrinal-philosophical concept of human rights level; See, for instance, B. van der Sloot, '[Legal Fundamentalism: Is Data Protection Really a Fundamental Right](#)', in: R. Leenes et al., *Data Protection and Privacy: (In)visibilities and Infrastructures*, Springer, 2017, pp. 13-19 on the doctrinal-philosophical concept of Charter rights.

¹⁴⁴ B. Çalı, '[The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020; O. Pollicino, '[The Right to Internet Access: Quid iuris?](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020; S. Tully, '[A Human Right to Access the Internet? Problems and Prospects](#)', *Human Rights Law Review*, Vol. 14(2), 2014; D. Joyce, '[Internet Freedom and Human Rights](#)', *European Journal of International Law*, Vol. 26(2), 2015, pp. 493-514; J. Thornhill, '[Internet access is both a human right and a business opportunity](#)', *Financial Times*, 29 June 2020; M. Reglitz, '[The Human Right to Free Internet Access](#)', *Journal of Applied Philosophy*, Vol. 37(2), 2019, pp. 314-331; M. Best, '[Can the Internet be a Human Right?](#)', in *Human Rights & Human Welfare*, Vol. 4, 2004, pp. 23-31; P. De Hert and D. Kloza, '[Internet \(access\) as a new fundamental right. Inflating the current rights framework?](#)', *European Journal of Law and Technology*, Vol. 3(3), 2012; D. Luch and S. Schulz: '[Das Recht auf Internet als Grundlage der Online-Grundrechte](#)', Lorenz-von-Stein-Institut für Verwaltungswissenschaften, 2013, p. 56 et seq. It should be noted that these commentators speak to different scopes and varying legal frameworks.

¹⁴⁵ P. De Hert and D. Kloza, '[Internet \(access\) as a new fundamental right. Inflating the current rights framework?](#)', *European Journal of Law and Technology*, Vol. 3(3), 2012; N. Lucchi, '[The role of internet access in enabling individual's rights and freedoms](#)', EUI WP RSCAS 2013/46, July 2013, pp. 2-3 on the internet's democratic power; A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 131-150 the interplay between pluralism and a right to internet access.

¹⁴⁶ W. Benedek and M. Kettemann, *Freedom of Expression and the internet*, 1st edition, Council of Europe Publishing, December 2013, p. 42; similarly B. Çalı, '[The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, pp. 281-282.

¹⁴⁷ Communication on Connectivity for a Competitive Digital Single Market, [COM\(2016\)587](#), European Commission, 14 September 2016: 'where availability and take-up of very high capacity networks enable the widespread use of products, services and applications in the Digital Single Market'.

¹⁴⁸ Judgment in [Case with application No 33014/05](#), *Editorial Board of Pravoye Delo and Shtetel v Ukraine*, ECtHR, 5 May 2011, para. 63.

¹⁴⁹ L. Jasmontaite and P. De Hert, '[Access to the internet in the EU](#)', Brussels Privacy Hub Working Paper Vol. 6(19), February 2020, p. 18.

- Szoszkievicz considers that the many UN recommendations on internet-related topics, may evidence 'the process of a new human right being recognized' - a process that took 25 years as regards the right to water and sanitation. Internet-related recommendations of UN-treaty bodies under the Universal Periodic Review (UPR) mechanism are as numerous as those related to the right to food and the right to water and appear more frequently than those related to electricity.¹⁵⁰
- By codifying a right to internet access on a fundamental level, citizens would be protected against regulatory backpedalling by legislators.¹⁵¹
- The concern that connectivity may be 'too burdensome to provide', may be rebutted on the argument that 'No access right is conceptualised in an absolute way and general constraints apply to access rights: duties of progressive realisation, minimum core obligations and priority for vulnerable members of society would also apply to a right to internet access.'¹⁵² Additionally, all EU households are covered by a broadband connection¹⁵³ and the government could even share the costs of network expansion with private sector actors through regulatory instruments¹⁵⁴. Some scholars hold that as costs decrease, the likelihood that access-facilitating regulations might be incorporated into the scope of fundamental rights increases.¹⁵⁵
- Scholars have demonstrated that a right to internet access may be derived from the right to freedom of expression and information by operationalising the rationales from cases concerning pluralism and access to private property.¹⁵⁶

Arguments **opposing**¹⁵⁷ the recognition of such a right are oftentimes of a more technical nature:

- The moral doctrine of human rights interprets human rights as guarantees that people in all countries and cultures have simply because they are human. This doctrine attempts to identify minimum prerequisites for a good life.¹⁵⁸ Advocates hold that the internet is only a means (tool) to an end and therefore does not qualify as a human right.
- Similarly, some consider technology as an enabler of rights, not an inherent right in itself.¹⁵⁹ Since treaties and constitutions did not guarantee the right to access a printing press, a typewriter or a telephone (arguable), no right to internet should be introduced.

¹⁵⁰ Ł. Szoszkievicz, [Internet Access as a New Human Right?](#), *Adam Mickiewicz University Law Review*, Vol. 8, 2018, p. 51.

¹⁵¹ O. Pollicino, 'The Right to Internet Access: Quid iuris?', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 271.

¹⁵² B. Çalı, 'The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 282.

¹⁵³ [Report on DESI 2020 – Connectivity](#), European Commission, p. 5; Also satellite internet is becoming more available and affordable across Europe, see J. Kühling and F. Toros, [Ausbauanreize für Glasfaser sowie ausgewählte infrastrukturbezogene Rechtsfragen zur Umsetzung des europäischen Kodex für die elektronische Kommunikation](#), pp. 156-175. It was [reported](#) that the stability and quality of satellite internet access is not yet sufficient.

¹⁵⁴ Article 90(1)(b) of the [EECC](#); As regards funding mechanisms adopted in select Member States see Report on Member States' best practices to support the defining of adequate broadband internet access service, [BoR \(20\) 99](#), BEREC, 11 June 2020, pp. 23-24; J. Kühling and K.-H. Neumann, 'Ökonomische und rechtliche Rahmenbedingungen zum Ausbau und zur Finanzierung von Breitband-Hochleistungsinfrastrukturen in dünn besiedelten Gebieten' in R. Inderst et al., *Der Ausbau neuer Netze in der Telekommunikation*, Nomos, 2012, pp. 201-204.

¹⁵⁵ See A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 140.

¹⁵⁶ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161.

¹⁵⁷ V. Cerf, [Internet access is not a human right](#), *The New York Times*, 4 January 2012; P. De Hert and D. Kloza, '[Internet \(access\) as a new fundamental right. Inflating the current rights framework?](#)', *European Journal of Law and Technology*, Vol. 3(3), 2012.

¹⁵⁸ A. Fagan, [Human Rights](#), *Internet Encyclopedia of Philosophy* and J. Nickel, [Human Rights](#), *Stanford Encyclopaedia of Philosophy*, 11 April 2019.

¹⁵⁹ Challenging this argument D. Rothkopf, [Is Unrestricted Internet Access a Modern Human Right?](#), *Foreign Policy*, 2 February 2015; B. Çalı, '[The Case for the Right to Meaningful Access to the Internet as a Human Right in International](#)

- From a practical point of view, it may be argued that the need for such action has not been sufficiently demonstrated and a more detailed analysis is necessary.¹⁶⁰ It would be helpful to know why specifically individuals received download speeds of less than 10 Mbps in 2020.¹⁶¹ Moreover, the effectiveness and efficiency of a right to internet access in securing social and economic participation might be challenged. Since 'no access right is conceptualised in an absolute way'¹⁶² it should be assessed whether the remaining connectivity gaps would at all be addressed by a novel right to internet access in order to examine its effectiveness. Conversely, socioeconomic incentives and EU actions¹⁶³ might further promote the adoption of the internet irrespective of the codification of such a right, thereby exposing fundamental rights action as inefficient. Sceptics might also argue that the introduction of a standalone fundamental right is only necessary where pre-existing fundamental rights cannot accommodate a progressive interpretation guaranteeing a derived right to internet access. Additionally, universal service provisions (Articles 84-92 of the EECC) and provisions granting the individual remedies in case of mal- and non-performance (Article 4(4) of the Open Internet Access Regulation¹⁶⁴ in conjunction with national laws) may already sufficiently address the need for connectivity and protection against the backsliding of the national legislators.¹⁶⁵ Finally, the implications of further extending the scope of the envisioned access right through qualifications or supplementary entitlements should be thoroughly analysed.¹⁶⁶
- From a doctrinal standpoint, commentators¹⁶⁷ might argue that a right to internet access, particularly one conceived as a subjective right, would interfere with the division of powers and the principle of democracy, since the judiciary would set the standards of minimal connectivity and not the legislative or the executive. Similarly, this might interfere with the

[Law](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, pp. 281-282; K. Mathiesen, '[Human Rights for the Digital Age](#)', *Journal of Mass Media Ethics*, Vol. 29(1), 2014, pp. 4-7.

¹⁶⁰ S. Tully, '[A Human Right to Access the Internet? Problems and Prospects](#)', *Human Rights Law Review*, Vol. 14(2), 2014, p. 184, pointedly poses the question: 'does Internet access warrant recognition as a stand-alone human right, or is it sufficient that access is so bound up with one or more existing rights that formal recognition is unnecessary?'; See also J. Gulati and D. Yates, [Different Paths to Universal Access](#), TPRC Conference 2011.

¹⁶¹ As a point of departure for a methodological framework, see [Households – reasons for not having internet access at home](#), European Commission website. In 2020, [89.0 %](#) of EU households had a broadband connection. Some [77 %](#) of EU households had a fixed broadband connection, of which [8.4 %](#) received less than 10 Mbps.

¹⁶² B. Çalı, '[The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 282.

¹⁶³ See Section '1. EU socioeconomic setting'.

¹⁶⁴ Open Internet Access Regulation (EU) 2015/2120. See Study on the implementation of the open internet provisions of the Telecoms Single Market Regulation, [SMART 2017/0011](#), DG CNECT, European Commission, 2019, pp. 111-117 for details on the implementation. See Guidelines detailing Quality of Service Parameters, [BOR 20 \(53\) final](#), 6 March 2020, p. 21 and the Report on the implementation of the open internet access provisions of the Regulation (EU) 2015/2120, [COM\(2019\) 203](#), European Commission, 30 April 2019, p. 9; see Section 57(4) of the [TKG-Novelle](#) as well as the explanatory memorandum of the [TKG-Novelle-E](#) on pp. 289-290 concerning the implementation in German law.

¹⁶⁵ See Section '3.3.3. European Union level'.

¹⁶⁶ See Section '3.1.3. Fleshing out the scope – A case study', Subsection 'The rights perspective'.

¹⁶⁷ W. Rüfner, 'Leistungsrechte' in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 684-688; D. Murswiek, 'Grundrechte als Teilhaberechte, soziale Grundrechte', in J. Isensee and P. Kirchhof, *Handbuch des Staatsrechts IX*, C.F. Müller, 30 September 2011, pp. 586-596; D. Merten 'Begriff und Abgrenzung der Grundrechte', in D. Merten and H.-J. Papier, *Handbuch der Grundrechte II*, C.F. Müller, 18 December 2006, pp. 565-566. J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den ,neuen' Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren' in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105.

- governments' budget autonomy and produce issues in cases of financial crisis. However, so far, the budgetary implications have not been quantified (see second last item in favour).
- Where the right to internet access is conceived or interpreted as a subjective right, it may expose the EU and its Member States to non-contractual liability claims, while a principle would not.¹⁶⁸
 - Finally, some argue that the number of human rights is generally inflating and thereby adverse effects arise.¹⁶⁹ Still today, people lack water and sanitation, while advocates of digital human rights propose to extend the catalogue and (de facto) shift the focus away from the most basic needs.

3.3. Legal footing

As regards the question of which text might provide an authoritative and enforceable legal footing for a fundamental right, the existing literature oftentimes refers to the **ECHR**, the **CFR** or the Member States' **constitutions** - not least because the ECtHR has already taken up the subject in its judgments¹⁷⁰ and some Member States, such as Greece¹⁷¹ and Portugal,¹⁷² have explicitly codified rights to internet access in their constitutions. Italian MPs submitted constitutional amendments in this regard on two occasions, most recently in 2015.¹⁷³ Constitutional courts may also derive a right to internet access from pre-existing rights.¹⁷⁴ Where fundamental rights to internet access are conceived as subjective social rights, certain Member States may face challenges integrating them with their fundamental laws.¹⁷⁵

¹⁶⁸ T. von Danwitz and K. Paraschas, '[A Fresh Start for the Charter – Fundamental Questions on the Application of the European Charter of Fundamental Rights](#)', *Fordham International Law Journal*, Vol. 35(5), 2017, p. 1413; K. Lenaerts, '[La solidarité ou le chapitre IV de la Charte des droits fondamentaux de l'Union européenne](#)', *Revue trimestrielle des droits de l'homme*, Vol 2010(82), 2010, p. 224; It should be noted that EU measures giving effect to principles may also expose Member States to liability claims, see the [summary](#) of Judgment in [Joined cases C-6/90 and C-9/90, Francovich](#), CJEU, 19 November 1991.

¹⁶⁹ See de P. De Hert and D. Kloza, '[Internet \(access\) as a new fundamental right. Inflating the current rights framework?](#)', *European Journal of Law and Technology*, Vol. 3(3), 2012, who connects the general arguments with the case in point.

¹⁷⁰ Esp. Judgment in [Case with application No 3111/10, Ahmet Yildirim v. Turkey](#), ECtHR, 18 December 2012. This case is also notable, because the ECtHR refers to several texts produced by the CoE, the European Union and the United Nations, as well as a comparative analysis of national systems on the topic of a right to internet access.

¹⁷¹ Article 5A(2) of the Greek constitution: 'All persons have the right to participate in the Information Society. Facilitation of access to electronically transmitted information, as well as of the production, exchange and diffusion thereof, constitutes an obligation of the State, [...].'

¹⁷² Article 35(6) of the Portuguese constitution: 'Everyone shall be guaranteed free access to public- use computer networks, [...]'; [Portugal closes the digital divide via suite of digital public services](#), European Commission website.

¹⁷³ See O. Pollicino, '[The Right to Internet Access: Quid iuris?](#)', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 269 et seq.

¹⁷⁴ Judgment in [Case with application No 3111/10, Ahmet Yildirim v. Turkey](#), ECtHR, 18 December 2012, para. 31: A survey among 20 CoE member States (Austria, Azerbaijan, Belgium, the Czech Republic, Estonia, Finland, France, Germany, Ireland, Italy, Lithuania, the Netherlands, Poland, Portugal, Romania, Russia, Slovenia, Spain, Switzerland and the United Kingdom) revealed 'that the right to internet access is protected in theory by the constitutional guarantees applicable to freedom of expression and freedom to receive ideas and information. [...]'. For another approach, see M. Kettemann, [Zugang zum Internet: Ein Grundrecht auch für Geflüchtete](#), iRIGHTSinfo, 16. Oktober 2015; M. Kettemann, Das Internetgrundrecht zwischen Völkerrecht, Staatsrecht und Europarecht [Teil I](#), [Teil II](#), [Teil III](#), Völkerrechtsblog, 7-12 Oktober 2015.

¹⁷⁵ J. Iliopoulos-Strangas, 'Soziale Grundrechte in den Mitgliedstaaten der Europäischen Union im Rechtsvergleich unter Berücksichtigung des Europäischen Rechts', in J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010, pp. 903-918 (esp. pp. 909-918); J. Iliopoulos-Strangas, 'Der Schutz der sozialen Grundrechte in den „neuen“ Mitgliedstaaten der Europäischen Union im Rechtsvergleich – Zugleich eine Einführung in die mitgliedstaatlichen Allgemeinen Grundrechtslehren', in J. Iliopoulos-Strangas, [Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union](#), Nomos, 2019, pp. 1090-1105; B. Hüpers and B. Reese, 'Vorbemerkung zu Titel

3.3.1. United Nations level

At the **United Nations level**, voluntary compliance and domestic primacy,¹⁷⁶ the programmatic and non-justiciable understanding of social rights by some treaty parties, as well as extensive socioeconomic disparities among parties to the Declaration and the Covenants, raise concerns about the prospects for approval and the effectiveness of such a human right. Nevertheless, the human rights mechanisms' considerable positive impact and its profound moral/political significance should not be underestimated.¹⁷⁷ On an international level, the concept of a right to internet access rose to prominence with a 2011 UN report of Special Rapporteur, Frank La Rue.¹⁷⁸ Contrary to media coverage,¹⁷⁹ the rapporteur did not purport a human right to internet access, but held that any access restrictions violate the freedom of expression guaranteed by Article 19(2) of the ICCPR, unless they are provided for by law and are proportionate. In 2016, the Human Rights Council (UNHRC) adopted a non-binding resolution¹⁸⁰ that presented internet access as a means to exercise human rights such as the freedom of expression, the right to freedom of peaceful assembly and association and the right to education. In a recent analysis, Szoszkiewicz¹⁸¹ proposed Article 15(1)b of the International Covenant on Economic, Social and Cultural Rights (ICESCR) as a provision that may serve as a legal starting point for the conceptualisation of a right to internet access.¹⁸²

3.3.2. Council of Europe level

On the **Council of Europe** level, the subject matter integrates best with the European Social Charter (ESC), however, the inherent enforcement lacunae deflect attention towards a more authoritative regime capable of hosting a positive right to internet access,¹⁸³ notably the European Convention on Human Rights (ECHR). Despite presenting the more effective bedrock, the ECHR, too, suffers from enforcement deficits.¹⁸⁴ Nevertheless, the human rights mechanisms' considerable positive impact and its profound moral/political significance should not be underestimated.¹⁸⁵ While the European Court of Human Rights (ECtHR) tentatively derives a right to internet access for prisoners from the freedom of expression (Article 10 of the ECHR)¹⁸⁶ and the right to education (Article 2 of Protocol

IV', in J. Meyer and S. Hölscheidt, *Charta der Grundrechte der EU*, Nomos, 2019, paras. 20-21 on the Poland and UK '[opt-out](#)' protocol.

¹⁷⁶ V. Shikehman, [Implementing Decisions of International Human Rights Institutions](#), *European Journal of International Law*, Vol. 30(3), 2019, pp. 753-777.

¹⁷⁷ P. Leach, [The Continuing Utility of International Human Rights Mechanisms?](#), EJIL:Talk!, 1 November 2017.

¹⁷⁸ Report of the special rapporteur on the promotion and protection of the right to freedom of opinion and expression, Frank La Rue, [A/HRC/17/27](#), Human Rights Council, 16 May 2011.

¹⁷⁹ S. Psaila, '[UN declares Internet access a human right](#)' – [did it really?](#), DiPLO, 10 June 2011.

¹⁸⁰ The promotion, protection and enjoyment of human rights on the Internet, [A/HRC/32/L.20](#), Human Rights Council, 27 June 2016.

¹⁸¹ Ł. Szoszkiewicz, [Internet Access as a New Human Right?](#), *Adam Mickiewicz University Law Review*, Vol. 8, 2018.

¹⁸² However, according to OHCHR, [Fact Sheet No16. The Committee on Economic, Social and Cultural Rights](#), p. 2 'Economic, social and cultural rights are often viewed as effectively "second-class rights" – unenforceable, non-justiciable, only to be fulfilled "progressively" over time'.

¹⁸³ Judgment in [Case with application No 628973](#), *Airey v Ireland*, ECtHR, 6 February 1981, para. 26, held, '[w]hilst the Convention sets forth what are essentially civil and political rights, many of them have implication of a social or economic nature' and an interpretation of the Convention may extend into the sphere of social and economic rights as 'there is no water-tight division separating that sphere from the field covered by the Convention'. For an analysis of the Court's rulings on ECHR social rights, see [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 85 et seq.

¹⁸⁴ G. Stafford, The Implementation of Judgments of the European Court of Human Rights: Worse Than You Think – [Part 1](#) and [Part 2](#), EJIL:Talk!, 7 and 8 October 2019; V. Shikehman, [Implementing Decisions of International Human Rights Institutions](#), *European Journal of International Law*, Vol. 30(3), 2019, pp. 753-777.

¹⁸⁵ P. Leach, [The Continuing Utility of International Human Rights Mechanisms?](#), EJIL:Talk!, 1 November 2017.

¹⁸⁶ Judgment in [Case with application No 21575/08](#), *Jankovskis v Lithuania*, ECtHR, 17 January 2017.

No 1),¹⁸⁷ it also clarified¹⁸⁸ that Article 10 of the ECHR does not generally oblige states to provide internet access to all prisoners (much less the general public).¹⁸⁹ Nevertheless, the Court may one day derive such a right from Article 10 of the ECHR,¹⁹⁰ or a standalone right to internet access might be introduced. While it may prove difficult to reconcile a right to internet access with certain moral conceptions of human rights,¹⁹¹ it could more easily be integrated with a legal/political conception of human rights.¹⁹² Under the convention, social rights, which necessitate positive measures for their fulfilment and may require progressive realisation by the state, provide states with a wide margin of appreciation with regard to the means chosen to comply with the obligations.¹⁹³

Genesis and effect of the ESC: The European Social Charter (ESC) is a flagship convention of the Council of Europe (CoE) together with the ECHR.¹⁹⁴ Today, the ESC is understood to contain positive obligations¹⁹⁵ and to extend the scope of rights that are already guaranteed in the ECHR.¹⁹⁶ 'Given the relative novelty of social rights and the difficulty of defining them in the post-war context', the Convention and the Charter were adopted separately.¹⁹⁷ Its supervisory body, the European Committee of Social Rights (ECSR), clarifies, that 'the Charter was envisaged as a human rights instrument to complement the European Convention on Human Rights. [...] the Charter must be interpreted so as to give life and meaning to fundamental social rights'¹⁹⁸. 'To date, all 28 EU Member States have ratified, either the 1961 Charter or the Revised Charter; eight of them have not ratified the Revised Charter.'¹⁹⁹ The EU itself has not ratified the European Social Charter and, according to some commentators, it is very unlikely²⁰⁰ that it will. Unlike rights contained in

¹⁸⁷ Judgment in [Case with application nos. 47121/06, 13988/07 and 34750/07](#), *Mehmet Reşit Arslan and Orhan Bingöl v. Turkey*, ECtHR, 18 June 2019.

¹⁸⁸ Judgment in [Case with application No 17429/10](#), *Kalda v Esontia*, ECtHR, 19 January 2016, para 45; Judgment in [Case with application No 21575/08](#), *Jankovskis v Lithuania*, ECtHR, 17 January 2017, para. 55.

¹⁸⁹ See also Section '3.1.1. Lessons learned from case law'.

¹⁹⁰ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-161.

¹⁹¹ K. Mathiesen, 'Human Rights for the Digital Age', *Journal of Mass Media Ethics*, Vol. 29(1), 2014, pp. 6-7 as opposed to V. Cerf, [Internet access is not a human right](#), *The New York Times*, 4 January 2012; On the theory of human rights see J. Nickel, [Human Rights](#), Stanford Encyclopaedia of Philosophy, 11 April 2019; S. van Duffel, 'Moral Philosophy', in D. Shelton, *The Oxford Handbook of International Human Rights Law*, December 2013, pp. 32-53.

¹⁹² B. Çalı, 'The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 281; P. De Hert and D. Kloza, 'Internet (access) as a new fundamental right. Inflating the current rights framework?', *European Journal of Law and Technology*, Vol. 3(3), 2012.

¹⁹³ [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, pp. 32-33.

¹⁹⁴ C. Benelhocine, *The European Social Charter*, Council of Europe Publishing, February 2012, p. 12; see [The evolution of the Charter and the Convention within the Council of Europe: a comparative overview](#), Council of Europe website, for a basic comparison of the ESC and the ECHR.

¹⁹⁵ [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 55.

¹⁹⁶ C. Benelhocine, *The European Social Charter*, Council of Europe Publishing, February 2012, p. 28 et seq. highlighting i.a. the broader scope of the right to education in the Charter. [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 30-31.

¹⁹⁷ C. Benelhocine, *The European Social Charter*, Council of Europe Publishing, February 2012, p. 12.

¹⁹⁸ Decision on [Case No 14/2003](#), *International Federation of Human Rights Leagues (FIDH) v. France*, ECSR, 8 September 2004, para. 27-29.

¹⁹⁹ [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 77.

²⁰⁰ U. Khaliqu, 'The EU and the European Social Charter' in *Cambridge Yearbook of European Legal Studies*, Vol. 15, 2013, pg.181 et seq. lists three reasons (1) the balance that the CJEU strikes between fundamental rights and market freedoms may not be ideal from the perspective of rights protection (2) the relation between CJEU, ECSR and the ECtHR would need to be resolved (3) countries like Poland (and the United Kingdom) continue to stress the 'different' nature of economic and social rights as compared to civil and political rights. For more details on a potential accession

the ECHR, ESC rights do not extend to all individuals within the jurisdiction of the member state, but 'apply only to the nationals of the State concerned and to the nationals of the State concerned and to the nationals of other States Parties lawfully resident or working regularly in that State. [...] Clearly, the rights will apply to EU nationals exercising most market freedoms.'²⁰¹ The conclusions of the ECSR are not legally binding and thus the Charter relies on the implementation through domestic law.²⁰² Some member states have a programmatic and non-justiciable understanding of the social rights.²⁰³

Reception of the ESC by EU institutions: The European Social Charter has not received as much attention as the ECHR by the European institutions,²⁰⁴ and some scholars²⁰⁵ even speak of indifference towards and repeated snubbing of the ESC and its supervisory body, the ECSR. The Court of Justice has occasionally acknowledge that the European Social Charter could be relied upon to guide the interpretation of EU law – but this remains the exception.²⁰⁶ Scholars²⁰⁷ contemplate that it might be the *à la carte* system²⁰⁸ of the ESC preventing it from becoming a more authoritative source for the CJEU. Furthermore, it is only where the EU Charter of Fundamental Rights (CFR) identifies a social right to be more than an 'objective for action by the Union', that a reference to the Council of Europe would be deemed appropriate.²⁰⁹ Consequently, the CFR functions as a gatekeeper and limits the potential impact of the ESC. Additionally, the ESC is enforced by the ECSR, rather than a court. Advocates General refer to the ESC more frequently than the Court, but it is usually not central to their reasoning and AG Francis G. Jacobs (questionably) stated that the ESC does not contain rights, but rather 'policy goals'.²¹⁰

process see [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 44.

²⁰¹ U. Khaliqu, '[The EU and the European Social Charter](#)' in *Cambridge Yearbook of European Legal Studies*, Vol. 15, 2013, p. 174.

²⁰² [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 41.

²⁰³ U. Khaliqu, '[The EU and the European Social Charter](#)' in *Cambridge Yearbook of European Legal Studies*, Vol. 15, 2013, p. 184, fn. 63: Countries such as Poland and the United Kingdom seem to be tending towards a more programmatic, aspirational and not justiciable understanding.

²⁰⁴ U. Khaliqu, '[The EU and the European Social Charter](#)' in *Cambridge Yearbook of European Legal Studies*, Vol. 15, 2013, p. 174 et seq.; [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 19 et seq.; [European Social Charter and European Union law](#), Council of Europe website; [Working Document on The relationship between European Union law and the European Social Charter](#), European Committee of Social Rights, 15 July 2014.

²⁰⁵ U. Khaliqu, '[The EU and the European Social Charter](#)' in *Cambridge Yearbook of European Legal Studies*, Vol. 15, 2013, p. 180.

²⁰⁶ [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 19 et seq.; [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 82: 'only where the rights protected under the EU Charter of Fundamental Rights are inspired by the former, as is the case, in particular, with Chapter IV of the EU Charter, entitled "Solidarity"'.
²⁰⁷ [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 21.

²⁰⁸ [Analysis of the legal framework of the Council of Europe for the protection of social rights in Europe](#), Council of Europe, September 2019, p. 10: 'Unlike the Convention, the (revised) Charter is based on an *'à la carte'* system of acceptance of its provisions, which allows States to choose to a certain extent the provisions they are willing to accept as obligations under international law'.

²⁰⁹ [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 21.

²¹⁰ U. Khaliqu, '[The EU and the European Social Charter: \[...\]](#)', p. 177; [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 13 both referring to the [opinion](#) of AG Francis G. Jacobs delivered on the *Albany International* case ([Case C-67/96](#), judgment of 21 September 1999, ECR I-5751).

3.3.3. European Union level

At the **EU secondary law** level, the co-legislators were able to achieve a compromise on universal (internet) service provisions (EECC and preceding frameworks). However, so far, a subjective *right* has not been introduced. Nevertheless, 'it is clear from the settled case law of the Court that, whenever the provisions of a directive appear, so far as their subject matter is concerned, to be unconditional and sufficiently precise, they may be relied upon before the national courts by individuals against the State where the latter has failed to implement the directive in domestic law by the end of the period prescribed or where it has failed to implement the directive correctly' ('direct effect of directives').²¹¹ If the CJEU deemed the universal service provisions of the EECC unconditional and sufficiently precise, consumers could effectively rely on the EECC to demand internet access from a Member State that failed to implement the provisions adequately. However, in practice, this could also have been argued concerning the preceding Universal Services Directive,²¹² but the mechanism does not appear to have contributed to closing connectivity gaps, which suggests that invoking the direct effect of universal service provisions is overlooked, proves impractical or fails – or that individuals generally lack appetite for litigating.²¹³ Apart from that, the European Parliament, the Council and the Commission proclaimed the European Pillar of Social Rights (No 20 of the EPSR) in a non-binding form, thereby rendering the inherent essential services provisions unenforceable.²¹⁴

On a **primary law** level, the EU Charter of Fundamental Rights (CFR) may serve as a bedrock for a fundamental right to internet access. Those who understand EU fundamental rights as human (moral) rights,²¹⁵ would face challenges integrating a right to internet access with the CFR (see preceding section). While Article 36 of the CFR (access to services of general economic interest) seems to present a plausible anchor for a right to internet access, the provision merely safeguards that the Union '*recognises and respects access to services of general economic interest as provided for in national laws*' (italics added for emphasis). Consequently, Article 36 of the CFR does not stipulate a positive right to intervention, but merely sets out the principle of respect by the Union for national law.²¹⁶ Notwithstanding, a new standalone right to internet access could be introduced

²¹¹ Judgment in [Case C-282/10, Dominguez](#), CJEU, 24 January 2012, para. 33. According to W. Schroeder, 'Artikel 288 AEUV', in R. Streinz, *EUV/AEUV*, C.H.Beck, 2018, para. 95, it is not necessary that the directive itself provides the individual with a subjective right. M. Nettesheim, 'Artikel 288 AEUV', in E. Grabitz et al, *Das Recht der EU*, C.H.Beck, 2021, para. 143 considers that individuals cannot rely on this mechanism where the directive is generally implemented correctly, but is misapplied in individual cases.

²¹² Universal Service Directive [2002/22/EC](#) as amended by Directive [2009/136/EC](#) and Regulation [\(EU\) 2015/5120](#), contains structurally similar provisions to those in the EECC.

²¹³ During certain periods in time, the mandated internet performance ('functional internet') may have been so far out of step with citizens' needs that legal actions would not succeed in securing sufficiently performant internet access, see Study on Review of the scope of universal service, [SMART 2014/0011](#), DG CNECT, European Commission, 2016, pp. 27-28.

²¹⁴ Communication on Establishing a European Pillar of Social Rights, [COM\(2017\) 250 final](#), European Commission, 26 April 2017, p. 7 and Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 201 final](#), European Commission, 26 April 2017, p. 4; See Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 206 final](#), European Commission, 26 April 2017, p. 14 for stakeholders' opinions on the appropriate legal nature. See considerations on EPSR in Section '5. EU secondary legislation and actions' below.

²¹⁵ B. van der Sloot, '[Legal Fundamentalism: Is Data Protection Really a Fundamental Right](#)', in: R. Leenes et al, *Data Protection and Privacy: (In)visibilities and Infrastructures*, Springer, 2017, pp. 13-19; [The European Union and international human rights law](#), Office of the United Nations High Commissioner for Human Rights, 2011, p. 9.

²¹⁶ [Explanations relating to the Charter of Fundamental Rights](#), Praesidium of the European Convention, 14 December 2007, Explanation on Article 36. It is contentious whether Member States are also bound by the provision. For a list of references, see K. Rohleder, 'Artikel 36 GRCh', in: J. Meyer and S. Hölscheidt, *Charta der Grundrechte der Europäischen Union*, Nomos, 2019, para. 15. In opposition, see E. Szyszczak, 'Article 36 CFR', in S. Peers et al., *The EU Charter of Fundamental Rights: A Commentary*, Hart Publishing, 2014, para. 36.13.

in the CFR and conceived as a principle, a subjective right or an unclassified provision²¹⁷ (see Section '3.1.3. Fleshing out the scope – a case study', Subsection on 'The rights perspective'). The scope of the right should be conceived with a view to the Union's competences. This is the case, because the Charter does not extend the field of application of Union law and therefore the EU can only act in accordance with its powers and tasks as defined in the Treaties, Article 51 of the CFR. Even if a subjective right to internet access were introduced in the CFR, the individual could not demand action from the EU based on the CFR, where the EU is not competent.²¹⁸ Similarly, it should be noted that individuals can only invoke fundamental rights against Member States if they are implementing EU law. Essentially, introducing a derived or standalone right to internet access in the CFR will face challenges, not least of a doctrinal nature.

Jasmontaite and de Hert²¹⁹ contemplate three scenarios on how the right to internet access might come to be recognised as an EU fundamental right:

- (1) the CJEU might recognise it as a general principle of EU law stemming from 'the constitutional traditions common to the Member States' according to Article 6 of the TEU,²²⁰
- (2) the CJEU and the ECtHR might introduce innovative elements, when addressing the modern concerns of a digital society and potentially even rely on high level political agreements,

²¹⁷ In this case, the classification is left to the courts.

²¹⁸ In light of Article 84 of the European Electronic Communications Code (EECC) it appears that the EU has at least one measure at its disposal to promote a right to internet access for consumers. The pertinent provisions find their legal basis in Article 114 TFEU (in conjunction with Article 169(1) and (2)(a) TFEU). A regulation may also mandate the enactment of a subjective right to this end (C. Ladenburger, 'Artikel 52 GRCh', in P.J. Tettinger and K. Stern, *Kölner Gemeinschaftskommentar zur Europäischen GRCh*, C.H.Beck, 2006, para. 88; M. Ruffert, 'Artikel 288 AEUV', in C. Calliess and M. Ruffert, *EUV AEUV*, C.H.Beck, 2016, paras. 42-45). L. Jasmontaite and P. De Hert [bring](#) Articles 170-172 TFEU into play. While Article 172 TFEU provides the legal basis for 'regulatory measures supporting the establishment and development of trans-European networks in the area of telecommunications', it does not provide the basis for access rights according to the prevailing opinion among legal scholars (C. Calliess, 'Artikel 170 AEUV', in C. Calliess and M. Ruffert, *EUV AEUV*, C.H.Beck, 2016, para. 21; P. van Vormizeele, 'Artikel 170 AEUV', in J. Schwarze et al., *EU-Kommentar*, Nomos, 2019, para. 16; D. Buschle, 'Artikel 170 AEUV', in H. von der Groeben et al., *Europäisches Unionsrecht*, Nomos, 2015, paras. 22-23). Prima facie, the EU does not appear to have the competence to ensure a connection for pure leisure purposes. In practice, the same connection provided to the individual acting as a consumer may serve for other purposes. On EU competences as boundaries for the application of a right to internet access that comprises ensuring digital literacy training in the school syllabus, see box 'Significance of an entitlement to education on digital competences'.

²¹⁹ L. Jasmontaite and P. De Hert, '[Access to the internet in the EU](#)', Brussels Privacy Hub Working Paper Vol. 6(19), February 2020, p. 11 et seq.

²²⁰ Judgment in [Case with application No 3111/10, Ahmet Yıldırım v. Turkey](#), ECtHR, 18 December 2012, para. 31 cites a survey among twenty Council of Europe member States revealing 'that the right to Internet access is protected in theory by the constitutional guarantees applicable to freedom of expression and freedom to receive ideas and information. The right to Internet access is considered to be inherent in the right to access information and communication protected by national Constitutions, and encompasses the right for each individual to participate in the information society and the obligation for States to guarantee access to the Internet for their citizens. It can therefore be inferred from all the general guarantees protecting freedom of expression that a right to unhindered Internet access should also be recognised.' While this may hold true for a negative right to internet access, it is questionable, to what extent constitutional provisions, such as the right of freedom of expression and public service provisions, guarantee a subjective social right to internet. M. Butt et al., [Fundamental social rights in the constitutions of the Member States](#), EPRS, European Parliament, February 2000; J. Iliopoulos-Strangas, *Soziale Grundrechte in Europa nach Lissabon*, Nomos, 2010; J. Iliopoulos-Strangas, *Soziale Grundrechte in den "neuen" Mitgliedstaaten der Europäischen Union*, Nomos, 2019; J. Iliopoulos-Strangas, 'Soziale Grundrechte', in D. Mertens and H.-J. Papier, *Handbuch der Grundrechte VI/1*, C.F. Müller, 27 Mai 2010, pp. 300-302.

- (3) the co-legislators or the CJEU might 'incorporate' rights recognised at an international level (particularly the ECHR/ECtHR²²¹ and exceptionally the ECS/ECSR²²²) in the EU fundamental rights framework.

Section summary: Legal footing

Several legal frameworks may serve as the bedrock for a right to internet access. A European right to internet access may be codified in the European Convention on Human Rights or the EU Charter of Fundamental Rights. An attempt to introduce such a right in the latter would face doctrinal challenges.

²²¹ Article 52(3) of the CFR intends to promote consistency among the approaches of the CJEU and the ECtHR.

²²² The CJEU only references the European Social Charter and the jurisprudence of the European Committee of Social Rights in exceptional cases. See [Study on The European Social Charter in the context of implementation of the EU Charter of Fundamental Rights](#), Policy Department Citizens' Rights and Constitutional Affairs, European Parliament, January 2016, p. 19 et seq.

4. Stakeholder opinions

Overall, stakeholders tend to have a **positive attitude towards the idea of ensuring internet access** for residents. Their support for full connectivity reflects the socioeconomic importance of this medium, and some even explicitly advocate for a fundamental right to internet access.

Promoting full connectivity – From the Body of European Regulators for Electronic Communication (BEREC) 2020 strategy consultation,²²³ it becomes clear that the **industry** supports the digitalisation and full connectivity of Europe. Many representatives (Telefonica, Microsoft, Facebook and Huawei) encourage full connectivity notably through reliable high capacity networks like 5G. DIGITALEUROPE explicitly suggests that BEREC should aim at promoting [...] fixed connectivity to ALL households, fixed connectivity to ALL business and public sector and 5G connectivity in ALL regions and not only along transport paths and in the main cities. The European **Consumer** Organisation (BEUC) supports connectivity and favours a fast one.²²⁴ In the same vein, Sir Timothy Berners-Lee recently proudly declared that 'more than 1,300 companies and civil society organisations have signed the Contract for the Web from Microsoft to Reporters Without Borders'.²²⁵

Right to internet access – In a 2009/2010 BBC World Service poll,²²⁶ 87 % of the more than 27 000 respondents felt internet access should be a 'fundamental right of all people'. A 2012 survey²²⁷ by the Internet Society revealed that 83 % of the more than 10 000 respondents somewhat or strongly agreed 'access to internet should be considered a basic human right'. In their analysis of 30 different attempts to design an internet bill of rights, L. Gill et al.²²⁸ found six mentions of a right to internet access as a means for social participation and 24 mentions of a right to internet access in conjunction with education.²²⁹ Predominantly, civil society organisations and governments drafted these bills, indicating an overall awareness and consideration for this concept. So far, only a few **industry** representatives have made statements on this topic: Facebook CEO Zuckerberg published a 10-page document²³⁰ expressly stating that he believes internet access to be a human right. Recently, Microsoft CEO Nadella said in an interview for CNN 'That's why broadband is such a fundamental

²²³ Report on the outcome of the public consultation on the draft BEREC Strategy 2021-2025, [BoR \(20\) 107](#), BEREC, 11 June 2020, p. 8 and 12 et seq.

²²⁴ Public consultation on BEREC's 2021-2025 strategy, [BEUC-X-2020-022](#), 14 April 2020, The European Consumer Organisation (BEUC).

²²⁵ Sir Tim Berners-Lee, [Video debate with David SASSOLI, EP President: "Internet access: a new human right"](#), 28 October 2020, 14:45-14:57.

²²⁶ [Internet access is 'a fundamental right'](#), BBC News, 8 March 2010; [Four in Five Regard Internet Access as a Fundamental Right](#) (detailed findings).

²²⁷ Global Internet User Survey Summary Report, [rep-GIUS2012global-201211-en](#), Internet Society, 2012.

²²⁸ L. Gill et al., [Towards digital constitutionalism? Mapping attempts to craft an internet bill of rights](#), Berkman Center Research Publication No 2015-15, 9 November 2015, p. 16 et seq. and L. Gill et al., [Pinpoint Version Digital Bills of Rights Matrix](#) for reference counts ('right to access').

²²⁹ L. Gill et al., [Towards digital constitutionalism? Mapping attempts to craft an internet bill of rights](#), Berkman Center Research Publication No 2015-15, 9 November 2015, p. 8 et seq.: 'In some cases this is articulated as a positive obligation for states to provide access, in others it appears as a freedom from arbitrary or discriminatory denial of access.'

²³⁰ M. Zuckerberg, [Is Connectivity A Human Right?](#), p. 2.

right'.²³¹ It seems **academics** are either undetermined²³² or in favour²³³ of recognising a right to internet access as a fundamental right. However, the topic is only picking up momentum.²³⁴

Section summary: Stakeholder opinions

Many stakeholders favour the recognition of a novel right or adopt a 'wait and see approach'.

²³¹ C. Duffy, [Microsoft CEO: Broadband internet access is a 'fundamental right'](#), CNN, 2015.

²³² N. Lucchi, [The role of internet access in enabling individual's rights and freedoms](#), EUI WP RSCAS 2013/46, July 2013.

²³³ See Section '3.2. Benefits and drawbacks'.

²³⁴ On the implementation level, the industry is more likely to support a voucher approach, than the introduction of a right to enter into a contract with an internet service provider. According to the voucher approach, individuals with insufficient connectivity would receive a pledge of financial support from the state in the form of a voucher. Individuals may offer these vouchers to providers as an incentive to provide for connectivity. Providers may freely refuse to contract. For details, see T. Rudl, [Abgesang auf eine gute Idee](#), Netzpolitik.org, 7 December 2020 and [Rechtlich abgesicherter Anspruch auf schnelles Internet: Gutachten stellt sinnvolle Umsetzungsszenarien vor](#), German Broadband Association (BREKO), 1 February 2019, p. 6.

5. EU secondary legislation and action

The final section before the conclusion casts a cursory glance at EU legislations and actions that may interface with a novel right to internet access and thereby draws attention to its potential versatility and to facets that remain to be clarified. Most internet-related EU legislation and actions promote a hypothetical right to *meaningful* internet access, but certain provisions appear to conflict with such a right.²³⁵ In order to support future discussions on the topic and to promote the cross-fertilisation of ideas, this section is not strictly related to connectivity aspects and additionally explores secondary legislation related to content restrictions as well as digital education. While secondary legislation may inform the discussion on a fundamental right to internet access (not least when devising and comparing policy options),²³⁶ pending and prospective initiatives should maintain a view to promoting the overarching goal of socioeconomic participation through meaningful connectivity. The extensive EU measures speak to the internet's unmatched significance and (arguably) for the recognition as a fundamental right *sui generis*. Notwithstanding that fundamental rights only exceptionally apply in private relations such as between individuals and internet access providers or online services providers, legislation and actions may be understood as an implementing or ancillary measure of the envisioned right to internet access.²³⁷ Depending on a broad or narrow notion of the right's scope,²³⁸ more or less legislation and actions would come under its purview.

5.1.1. Adopted initiatives

In terms of adopted initiatives, particularly the Copyright Directive, the Regulation on Open Internet Access, and most notably the European rules on electronic communications as well as the European Pillar of Social Rights tie in with a potential right to *meaningful* internet access.

In the **European Electronic Communications Code**, two provisions stand out as regards a hypothetical right to internet access, namely Articles 100 and 84 of the EECC. While Article 100 of the EECC aims to reign in national measures on the access to or use of internet services that limit the exercise of rights or freedoms recognised by the Charter, Article 84 of the EECC obliges Member States to ensure universal internet access. Consequently, these provisions may be perceived to harmonise the implementation of a hypothetical fundamental right to internet access on an EU level. Some might even argue that facilitating universal connectivity through regulatory measures

²³⁵ Some provisions do not unequivocally promote a meaningful access, but may coincidentally interfere with access. Particularly Article 17 of the Copyright Directive may be read to interfere with an individual's fundamental right to freedom of expression. In this case the question arises whether the individual is sufficiently protected or merits further protection by a standalone right to internet access. A practical example of this dynamic is illustrated by the debates surrounding the HADOPI law (see considerations on Article 100 of the [EECC](#) in Section '5.1.1. Adopted initiatives' below).

²³⁶ The Report on [Freedom of Expression on the Internet](#), OSCE, 15 December 2011, p. 37, already in 2011 juxtaposed the approach of recognising internet access as a fundamental or universal human right and the approach of enacting legislative acts; See also J. Gulati and D. Yates, [Different Paths to Universal Access](#), TPRC Conference 2011.

²³⁷ Legislation may be incentivised, predetermined (i.e. parametrised), or even mandated by fundamental rights such as the right to freedom of expression and information and the envisioned right to internet access ('state-mediated effect' / 'duty to protect'). Even where legislation is not *prima facie* related to fundamental rights, it may carry over their effect into private relations ('horizontal indirect effect'). Conversely, legislation may conflict with fundamental rights of those regulated or otherwise affected. See E. Frantziou, [The Horizontal Effect of the Charter](#), *Cambridge Yearbook of European Legal Studies*, Vol. 22, 2020; O. De Schutter, [The Charter of Fundamental Rights as a Social Rights Charter](#), CRIDHO Working Paper 2018/4, July 2018, pp. 17-20; A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, pp. 108-164 (esp. pp. 117-118). In other contexts, commentators suggested that secondary law may (at least *de facto*) inform fundamental rights and establish the condition and limitations for their applications (Y. Ivanova, [The Role of the EU Fundamental Right to Data Protection in an Algorithmic and Big Data World](#), in D. Hallinan et al., *Data Protection and Privacy*, Vol. 13, 2020, p. 5-6).

²³⁸ See Section '3.1.3. Fleshing out the scope – a case study', Subsection 'The rights perspective'.

would present a positive obligation on the state pursuant a potential fundamental right to internet access.²³⁹

Article 100 of the EEC: In the context of the 2009 Telecoms Package,²⁴⁰ the European Parliament adopted amendment 138,²⁴¹ which sought safeguards against national measures aimed at unduly restricting users' internet access.²⁴² The amendment was adopted by Parliament in response to the French HADOPI law proposal, which enabled the national administrative body 'Hadopi' to take measures against internet subscribers infringing on intellectual property rights, pursuant to a three-strike approach, but without prior judicial ruling. Amendment 138 aimed to make prior judicial ruling mandatory and was intensely debated for almost two years. Catchphrases like the 'right to internet access'²⁴³ and 'internet freedom provision'²⁴⁴ polarised the debate. In the European Parliament debates,²⁴⁵ frequent references were made to fundamental rights, especially to the right of freedom of expression, the right to privacy and the right to judicial review. Some advocated – a seemingly standalone – right to freedom of access to the internet. Finally, Article 1(3a.) of the amended Framework Directive²⁴⁶ was adopted, subjecting national measures regarding the end users' internet access to strict requirements,²⁴⁷ however not necessarily a prior *judicial* ruling. The co-legislators maintained this provision in Article 100 of the 2018 recast (EECC). Article 100 of the EECC may be read as a sub-constitutional codification of a (defensive) right to internet access.

Article 84 of the EECC: The Universal Services Directive²⁴⁸ (USD) and the succeeding European Electronic Communications Code²⁴⁹ (EECC), include provisions that oblige Member States to provide individuals with internet access upon request (for details see Section '3.1.3. Fleshing out a right').²⁵⁰ These provisions do not explicitly provide individuals with *rights*,²⁵¹ but impose *obligations* on the

²³⁹ See A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 151.

²⁴⁰ Directive [2009/140/EC](#) in Procedure [2007/0247\(COD\)](#), which reviewed the 2003 regulatory framework for electronic communications.

²⁴¹ M. Schraa, [Telecoms Regulatory Report September 2009](#), Cullen-International, 29 September 2009.

²⁴² [Background – FAQs on internet access safeguards and the telecoms package](#), European Parliament website; See A. Ferti, 'The Internet Freedom Provision of the EU Telecoms Package', *Computer Law Review International*, Vol. 11(1), 2013, on the relation to fundamental rights.

²⁴³ European Parliament approves EU telecoms reform but adds 1 amendment: Commission reaction, [MEMO/09/219](#), European Commission, 6 May 2009; M. Schraa, [Stakeholders debate internet access as a fundamental right](#), Cullen-International, 9 September 2009.

²⁴⁴ EU Telecoms Reform: 12 reforms to pave way for stronger consumer rights, an open internet, a single European telecoms market and high-speed internet connections for all citizens, [MEMO/09/491](#), European Commission, 20 November 2009, and Electronic communication networks and services (debate), [CRE 23/11/2009 – 117](#), European Parliament, 23 November 2009.

²⁴⁵ Electronic communication networks and services (debate), [CRE 23/11/2009 – 117](#), European Parliament, 23 November 2009.

²⁴⁶ Directive [2002/21/EC](#) as amended by Directive [2009/140/EC](#).

²⁴⁷ Any measures [...] may only be imposed if they are appropriate, proportionate and necessary [...] and their implementation shall be subject to adequate procedural safeguards, [...], including effective judicial protection and due process. [...] A prior, fair and impartial procedure shall be guaranteed [...], [which can be administrative or involve a judge, depending on national law].

²⁴⁸ Directive [2002/22/EC](#) amended twice and lastly consolidated and amended together with other Telecoms Regulations (Framework, Universal Services, Access and Authorisation Directives) in the EECC.

²⁴⁹ Directive [\(EU\) 2018/1972](#) in Procedure [2016/0288\(COD\)](#). The transposition deadline expired on 21 December 2020.

²⁵⁰ For Background see R. Davies, [Briefing – Broadband as a Universal Service](#), Briefing, EPRS, European Parliament, April 2016; M. Szczepanski, [Briefing – The New European Electronic Communications Code](#), Briefing EU Legislation in Progress, EPRS, European Parliament, 16 January 2019.

²⁵¹ However, 'it is clear from the settled case law of the Court that, whenever the provisions of a directive appear, so far as their subject matter is concerned, to be unconditional and sufficiently precise, they may be relied upon before the national courts by individuals against the State where the latter has failed to implement the directive in domestic law by the end of the period prescribed or where it has failed to implement the directive correctly', see Judgment in [Case](#)

Member States. While the preceding USD²⁵² required Member States to ensure *functional internet* access for users at a fixed location, the recast provisions in Article 84 of the 2018 EECC require Member States to 'ensure that all consumers [...] have access to an affordable [...] adequate *broadband internet* access service [...] at the quality specified in their territories [...] at a fixed location'²⁵³ (emphasis added). In the impact assessment²⁵⁴ accompanying the EECC proposal, the Commission held that such a universal service obligation 'would allow for an improved access to essential e-services (eGovernment, VoIP, ebanking etc.) and would enhance citizens' social participation and their exercise of fundamental rights, for instance right to information, right to conduct business and right to education. For vulnerable groups of consumers (those on low incomes, elderly, those that are less mobile or less able to leave home due to carer responsibilities), affordable broadband is likely to reduce social isolation, improve sense of community and promote social inclusion'. In its staff working document²⁵⁵ accompanying the European Pillar of Social Rights,²⁵⁶ the European Commission went a step further and linked the universal service obligation to the CFR, namely Article 36 of the CFR (Access to services of general economic interest²⁵⁷). Ultimately, Article 84 of the EECC might be read as implementing a fundamental right to internet access.

In the same vein, it is crucial to take stock of the **European Pillar of Social Rights**²⁵⁸ (EPSR). Unlike Article 84 of the EECC, No 20 of the EPSR explicitly provides for a *right* to access essential services of good quality, including digital communications, i.e. the internet. Strictly speaking, this provision is not legally binding²⁵⁹ and therefore does not provide the individual with any justiciable rights. However, this instrument might serve as an interpretive tool for the CJEU and may (though unlikely²⁶⁰) gain legal authority in the long run. Recently, the Commission President, Ursula von der Leyen, committed to the Pillar in her speech before the Parliament on July 2019²⁶¹ and announced further actions to implement the principles and rights in her political guidelines for the European Commission.²⁶²

[C-282/10, Dominguez](#), CJEU, 24 January 2012, para. 33 and Section '3.3.3. European Union level'. Whether individuals might be able to derive a claim to Internet access on the grounds of a right to equal treatment by the administration is uncertain.

²⁵² See Article 4 of the Universal Service Directive [2002/22/EC](#).

²⁵³ For an overview of the requirements, see M. Mattera, [Universal service – scope, affordability and funding](#), Cullen-International, 19 July 2020, as well as Section '3.1.3. Fleshing out the scope – a case study', Subsection 'The rights perspective' above.

²⁵⁴ Staff working document on the EECC and establishing BEREC pt 2/3 (Annex 4), [SWD\(2016\) 303](#), European Commission, 14 September 2016, p. 253.

²⁵⁵ Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 201](#), European Commission, 25 April 2017, p. 73 et seq.

²⁵⁶ Interinstitutional Proclamation on the European Pillar of Social Rights, [2017/C 428/09](#), European Parliament, Council and European Commission, 13 December 2017.

²⁵⁷ Staff working document on the accessibility of public sector bodies' websites, [SWD\(2012\) 401](#), European Commission, 3 December 2012, p. 48 et seq.

²⁵⁸ Interinstitutional Proclamation on the European Pillar of Social Rights, [2017/C 428/09](#), European Parliament, Council and European Commission, 13 December 2017 in Procedure [2016/2095\(INI\)](#); For background information see Z. Rasnača, [\(Any\) relevance of the European Pillar of Social Rights for EU law?](#), European Law Blog, 17 November 2017; N. Milotay, [European Pillar of Social Rights](#), At a glance, EPRS, European Parliament, January 2017; N. Milotay, [Implementation of the Social Pillar](#), At a glance, EPRS, European Parliament, December 2017.

²⁵⁹ Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 201](#), European Commission, 25 April 2017, p. 73 et seq.

²⁶⁰ Z. Rasnača, [\(Any\) relevance of the European Pillar of Social Rights for EU law?](#), European Law Blog, 17 November 2017.

²⁶¹ President U. von der Leyen, [Opening statement in the European Parliament plenary session](#), 16 July 2019.

²⁶² President U. von der Leyen, [Political guidelines for the next European Commission 2019-2024](#), 16 July 2019, pp. 9-10.

Legal nature of the EPSR: The EPSR was jointly signed by the Parliament, the Council and the Commission on 17 November 2017. Given its political, non-binding legal nature, the Pillar is not directly enforceable and requires a translation into dedicated action or separate legislation.²⁶³ The Commission took the example of the Charter of Fundamental Rights and proposed an interinstitutional proclamation, which came to be its final form.²⁶⁴ However, there does not seem to be any intention for the Pillar to follow the path of the CFR, as the proclamation limits its enforcement²⁶⁵ and does not include a provision like Article 51(1) of the CFR binding EU Institutions and Member States.²⁶⁶ The CJEU²⁶⁷ or national courts might rely on its rights and principles to interpret EU law.²⁶⁸ Even if the Pillar develops judicial significance, it is questionable how the courts would differentiate between rights and (typically) non-binding principles.²⁶⁹

The **Regulation on Open Internet Access**²⁷⁰ safeguards equal and non-discriminatory treatment of internet traffic and promotes the quality of internet access services through transparency measures and regulatory supervision. It therefore provides for a *meaningful* internet access. One scholar considers that 'regulations - like net neutrality - could evolve to become part of a State's positive obligations to ensure freedom of expression guarantees'.²⁷¹ The same conclusion might be drawn from a fundamental right to internet access.

The regulation creates the individual and enforceable right for end users in the EU to access and distribute internet content and services of their choice. The regulation also enshrines the principle of non-discriminatory traffic management.²⁷² Apart from well-defined exceptions, under these rules blocking, throttling and discrimination of internet traffic by internet service providers (ISPs) is not allowed in the EU.²⁷³ Although the European Parliamentary debates²⁷⁴ around open internet and network neutrality were less charged with references to fundamental rights than the debate around the Copyright Directive (see below), it was clear from the beginning that fundamental rights would have to be taken into account. According to the Commission, the essence of neutrality and the issues underpinning the respective debate revolved around the topic of how to ensure the openness of the internet, while at the same time contributing to the enjoyment of and respect for fundamental rights, such as freedom of expression and freedom to conduct business.²⁷⁵ In its impact assessment, the Commission held that 'any limitation to access to open internet can affect end-

²⁶³ Communication on Establishing a European Pillar of Social Rights, [COM\(2017\) 250 final](#), European Commission, 26 April 2017, p. 7; See Staff working document on Establishing a European Pillar of Social Rights, [SWD\(2017\) 206 final](#), European Commission, 26 April 2017, p. 14 for stakeholders' opinions on this.

²⁶⁴ Communication on Establishing a European Pillar of Social Rights, [COM\(2017\) 250 final](#), European Commission, 26 April 2017, p. 6.

²⁶⁵ Recitals 17, 18, 19 of the Interinstitutional Proclamation on the European Pillar of Social Rights, [2017/C 428/09](#), European Parliament, Council and European Commission, 13 December 2017.

²⁶⁶ Z. Rasnača, [\(Any\) relevance of the European Pillar of Social Rights for EU law?](#), European Law Blog, 17 November 2017.

²⁶⁷ As the CJEU did with the Charter prior to Lisbon: [C-540/03 – European Parliament v Council](#).

²⁶⁸ Z. Rasnača, [\(Any\) relevance of the European Pillar of Social Rights for EU law?](#), European Law Blog, 17 November 2017.

²⁶⁹ This issue was raised by stakeholders in the public consultation as documented in Commission: [SWD\(2017\) 206 final](#), p. 15.

²⁷⁰ Regulation (EU) [2015/2120](#).

²⁷¹ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 140 and 150.

²⁷² [Open Internet](#), European Commission website.

²⁷³ [Open Internet](#), European Commission website.

²⁷⁴ European single market for electronic communications [...] (debate), [CRE 02/04/2014 – 16](#), European Parliament, 2 April 2014; European single market for electronic communications (debate), [CRE 27/10/2015 – 2](#), European Parliament, 27 October 2015.

²⁷⁵ Communication on The open internet and net neutrality in Europe, [COM\(2011\) 222 final](#), European Commission, 19 April 2011.

users' freedom of expression and the way in which they can receive and impart information'.²⁷⁶ Belli and van Bergen (CoE)²⁷⁷ further analysed the protection of human rights through network neutrality and held, inter alia, that market-based approaches to information flows would threaten to crowd out free speech. For this reason, the regulation contains safeguards, such as the end user right to 'access and distribute information and content', as well as the provider-facing obligation of 'equal treatment of [internet] traffic' and the preservation of the network's integrity.²⁷⁸

The regulation also empowers individuals to effectively claim remedies for mal-performance. It may be argued that this elicits more reliable internet connections through accountability and therefore contributes to meaningful internet access. Article 4(4) of the Regulation on Open Internet Access stipulates that any mal-performance regarding speed or other quality of service parameters shall be deemed to constitute non-conformity of performance, allowing consumers to demand remedies.²⁷⁹ The provision also relaxes the burden of proof on the consumer 'where the relevant facts are established by a monitoring mechanism certified by the national regulatory authority'. To date, consumers have been faced with the near impossible task of proving mal-performance in order to obtain remedies; this task is now alleviated through certified monitoring mechanisms that are used to track slow download and upload rates.²⁸⁰ BEREC holds that while national regulatory authorities are not required to establish or certify these mechanisms, where they do provide monitoring mechanisms for the purpose of monitoring mal-performance, they should be considered as certified.²⁸¹ While the regulation does not per se regulate internet access rights in a strict sense, it nevertheless presents a significant contribution to a *meaningful* internet access by regulating access and performance modalities.

Web Accessibility Directive (WAD) – Similarly, the rules²⁸² on promoting web accessibility, particularly for people with disabilities, could be understood as integrating with the scope of a

²⁷⁶ Impact Assessment on measures concerning the European Single Market for electronic communications and to achieve a Connected Continent, [SWD\(2013\) 331 final](#), European Commission, 11 September 2013.

²⁷⁷ Protecting Human Rights through Network Neutrality, [CMSI\(2013\)misc19E](#), Steering Committee on Media and Information Society, Council of Europe, 3-6 December 2013; Recently this topic was revisited in Recommendation on protecting and promoting the right to freedom of expression and the right to private life with regard to network neutrality, [CM/Rec\(2016\)1](#), Committee of Ministers (CoE), 13 January 2016, on protecting and promoting the right to freedom of expression and the right to private life with regard to network neutrality.

²⁷⁸ For details, see Guidelines on the Implementation of the Open Internet Access Regulation, [BoR \(20\) 112](#), BEREC, 11 June 2020.

²⁷⁹ See Section 57(4) of the [TKG-Novelle](#) and the explanatory memorandum of the [TKG-Novelle-E](#) on pp. 289-290, for an example of a national implementation; The [EECC](#) contains a similar provision. However, Article 105(5) of the [EECC](#) does not concern internet access services (ISPs) and number-independent interpersonal communications services (webmail, messaging services and internet telephony) and does not ease the burden of proof. The provision declares that the mal-performance of number-based interpersonal communications services (traditional fixed and mobile voice services) and services consisting wholly or mainly in the conveyance of signals (services for broadcasting, M2M) 'shall be considered to be a basis for triggering the remedies available to the consumer in accordance with national law'.

²⁸⁰ B. Holznagel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', in *Verbraucher und Recht*, Vol. 34(12), 2019, p. 442 as well as B. Holznagel and C. Vierling, 'Instrumente des Verbraucherschutzes in der Netzregulierung', in T. Brönneke et al., *Verbraucherrechtsvollzug*, Nomos, 2020, S. 75 ff. (83).

²⁸¹ Guidelines on the Implementation of the Open Internet Access Regulation, [BoR \(20\) 112](#), BEREC, 11 June 2020, p. 45; Mitteilung zur Konkretisierung der unbestimmten Rechtsbegriffe „erhebliche, kontinuierliche oder regelmäßig wiederkehrende Abweichung bei der Geschwindigkeit“ bei Festnetz-Breitbandanschlüssen im Download gemäß Art. 4 Abs. 4 Verordnung (EU) 2015/2120, [Mitteilung Nr. 485/2017](#), German Federal Network Agency ([BNetzA](#)), 12 July 2017; Fragen zu bestehenden und geplanten rechtlichen Vorgaben für Anbieter von Internetzugangsdiensten im Zusammenhang mit Netzneutralität und Qualitätstransparenz, [WD 5 -3000 -115/16](#), Bundestag WD, 27 Januar 2017, pp. 13-14.

²⁸² Directive [\(EU\) 2016/2102](#).

human²⁸³ or fundamental²⁸⁴ right to internet access. In accompanying documents and in Recital 12 of the WAD, the Commission references the (international) Convention on the Rights of Persons with Disabilities,²⁸⁵ rather than the CFR. Additionally, the Commission is providing support to research on web accessibility and to the deployment of solutions through financing and pilot projects.²⁸⁶

Article 17 of the **Copyright Directive**²⁸⁷ (DSMD) may be read as ensuring compliance with copyright laws and therefore as a contribution to a lawful digital ecosystem, i.e. *meaningful* internet access. Predominantly, however, commentators perceive the provision as jeopardising access to content, since the measures incentivised by Article 17 of the DSMD²⁸⁸ may collaterally reduce access to lawful online content ('over-blocking').²⁸⁹ Consequently, many commentators and stakeholders perceive the provision as an interference with the right to freedom of expression and information.²⁹⁰ Similarly, the provision might interfere with a (hypothetical) right to internet access, if its scope extended beyond connectivity to the ability to receive and impart online content.²⁹¹ According to Article 17(4)(b) of the DSMD, content-sharing platforms must block and filter copyright-infringing material, in accordance with high industry standards of professional diligence, in order to avoid liability. Article 17(4)(b) of the DSMD not only impacts rights of *content sharing platforms* and *copyright holders*, but also the rights of *users generating content* whose data becomes subject to general²⁹² and indiscriminate analysis or even erroneous removal²⁹³ ('over-blocking') and of *users enjoying content*

²⁸³ Article 9 of the [Convention on the Rights of Persons with Disabilities](#) (CRPD); Recital 12 of the Web Accessibility Directive (EU) 2016/2102.

²⁸⁴ Articles 26, 29 and 36 of the [EU Charter of Fundamental Rights](#).

²⁸⁵ [Convention on the Rights of Persons with Disabilities](#) (CRPD).

²⁸⁶ [Web Accessibility](#), European Commission website.

²⁸⁷ Directive (EU) 2019/790 in Procedure [2016/0280\(COD\)](#). The transposition deadline expired on 7 June 2021.

²⁸⁸ Formerly Article 13 of the [DSMD-COM](#).

²⁸⁹ e.g. G. Spindler, 'The Liability system of Art. 17 DSMD and national implementation – contravening prohibition of general monitoring duties?', *Journal of Intellectual Property, Information Technology and Electronic Commerce Law (jipitec)*, Vol. 10(3), 2019, challenges Article 17(4)(a) of the DSMD.

²⁹⁰ See, for instance, W. Benedek and M. Kettemann, *Freedom of expression and the internet*, 2nd edition, Council of Europe Publishing, August 2020, pp. 147-148.

²⁹¹ Such a broad design would imply an overlap with the freedom of expression and information. It is uncertain whether this is desirable. One could argue in favour that an internet connection in itself is meaningless without a trustworthy online environment, which includes fairly indiscriminate access to legal content. Additionally, cases which relate to both rights may form a thematic cluster with a specific focus on peculiarities of the internet (see fn. 140), which in turn would contribute to the coherence and systematisation of case law. However, courts have already developed a body of case law which takes into account content- and context-related nuances, including characteristics of communication mediums, under the right to freedom of expression and information ([Guide on Article 10 of the ECHR](#), ECtHR, 31 August 2020; W. Benedek and M. Kettemann, *Freedom of expression and the internet*, 2nd edition, Council of Europe Publishing, August 2020, pp. 139-146; [Digest of the case law on the right to freedom of expression and information](#), CJEU, 14 March 2021). A compromise position might argue that content moderation measures only interfere with a right to internet access where they reasonably and significantly deter individuals from using electronic communications services ensuring access to the internet or equate to the blocking of end points or websites (containing legal content). These deliberations go beyond the scope of this study and are merely included to stimulate discussion.

²⁹² G. Spindler, 'The Liability system of Art. 17 DSMD and national implementation – contravening prohibition of general monitoring duties?', *jipitec*, Vol. 10(3), 2019. In its [Impact Assessment](#), the European Commission presumes that the cooperation with rightsholders is required (notably to provide data such as identifiers 'fingerprints') for the efficient functioning of the filtering technologies.

²⁹³ According to the Impact assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 1/2](#), European Commission, 15 December 2020, p. 2, erroneous removal is 'the removal of content, goods or services offered online where such removal was not justified by the illegal nature of the content, goods, or services, or the terms and conditions of the online service, or any other reason justifying the removal of content, goods or services'. According to Staff working document on Copyright in the Digital Single Market, [SWD\(2016\) 301 final](#), European Commission, 14. September 2016, pp. 153-153 this may occur 'in cases where

whose source of information is reduced by the rate of false positives.²⁹⁴ Already from the Commission's impact assessment²⁹⁵ and Recital 70 of the DSMD, it becomes clear that Article 17 of the DSMD attempts to strike a delicate balance between the freedom to conduct business (Article 16 of the CFR), the freedom of expression²⁹⁶ (Article 11 of the CFR), the freedom of the arts (Article 13 of the CFR) and the right to (intellectual) property (Article 17(2) of the CFR) in a multi-stakeholder scenario. According to Recital 70 of the DSMD and the Commission's impact assessment²⁹⁷, negative impacts on the fundamental rights are mitigated by exceptions and limitations (e.g. Article 17(7) of the DSMD) as well as procedural safeguards (e.g. Article 17(9) of the DSMD).²⁹⁸ Although the co-legislators finally found a compromise and adopted the Directive, Article 17 of the DSMD is still criticised by scholars, and Poland has gone so far as to challenge Articles 17(4)(b) and 17(4)(c) of the DSMD as being contrary to the freedom of expression guaranteed by Article 11 of the CFR before the CJEU.²⁹⁹ Depending on its scope, this line of reasoning may be adopted in the context of a sui generis right to internet access.

the services limit user uploaded content in an unjustified manner (for example when an exception or a limitation to copyright applies or the content is in public domain) or when the technologies fail to identify the content correctly.'

²⁹⁴ i.e. situations where content is wrongly identified and removed.

²⁹⁵ Impact Assessment accompanying the Proposal for a Directive on copyright in the DSM, [SWD\(2016\) 301 final](#), European Commission, 14 September 2016, Section 5, particularly Section 5.2.3, p. 153 et seq.

²⁹⁶ G. Spindler, 'The Liability system of Art. 17 DSMD and national implementation – contravening prohibition of general monitoring duties?', *jipitec*, Vol. 10(3), 2019, clarifies that not only the right to expression of users generating content, but also the right to information of users enjoying content may be infringed by the obligation on access providers to block websites. Over time, the European Commission [expects](#) the accuracy to improve.

²⁹⁷ Impact Assessment accompanying the Proposal for a Directive on copyright in the DSM, [SWD\(2016\) 301 final](#), European Commission, 14 September 2016, Section 5, particularly Section 5.2.3, p. 153 et seq.

²⁹⁸ For details, see The European Copyright Society, 'Comment of the European Copyright Society Selected Aspects of Implementing Article 17 of the Directive on Copyright in the Digital Single Market into National Law', *jipitec*, Vol 11(2), 2020, para. 35 et seq.; J. Quintais et al., 'Safeguarding User Freedoms in Implementing Article 17 of the Copyright in the Digital Single Market Directive: Recommendations from European Academics', *jipitec*, Vol. 10(3), 2019.

²⁹⁹ Action in [Case C-401/19, Poland v Parliament and Council](#), 24 May 2019; B. Jütte and C. Geiger, [Regulating freedom of expression on online platforms? Poland's action to annul Article 17 of the Directive on Copyright in the Digital Single Market Directive](#), European Law Blog, 3 February 2021.

Other legislation promoting the implementation of content filters include the recently adopted Regulation on preventing the dissemination of terrorist content online³⁰⁰ and the Directive on combating sexual abuse and sexual exploitation of children.³⁰¹ The Audiovisual Media Services Directive,³⁰² tackling inter alia hate speech and violence, does not require ex-ante control measures.³⁰³ Additionally, companies deploy voluntary measures to combat harmful and illegal content³⁰⁴ and the Commission aims to facilitate such practices by initiatives such as the recent proposal on combating child sexual abuse online (COM(2020) 568 final),³⁰⁵ as well as by supporting research on new technologies, including automated prevention of uploading of terrorism content.³⁰⁶ Where powerful companies deploy excessive discretionary filtering, individuals may attempt to invoke their fundamental rights (horizontal effect or duty to protect).³⁰⁷

Beyond these initiatives, the EU further promotes connectivity through actions such as the Recovery and Resilience Facility (RRF), the 5G Action Plan, WiFi4EU, the Connecting Europe Broadband Fund, the Connecting Europe Facility and the Commission state aid rules for broadband expansion.³⁰⁸

5.1.2. Pending and prospective initiatives

Similar to existing legislation, several pending and prospective initiatives tie in with a fundamental right to internet access. Like in the past (see preceding Section, Subsection 'Article 100 of the EEC'), the topic of a right to internet access may resurface in debates around topical initiatives such as the Digital Services Act and the Digital Education Action Plan – potentially disguised in a freedom of expression and information rhetoric to reflect the current legal framework.

The **Digital Services Act** proposal (DSA-COM) may be read to contribute to a safe and lawful online environment and therefore to *meaningful* internet access. Conversely, it may jeopardise *meaningful* internet access where it collaterally provokes (excessive) over-blocking. Provisions may interface

³⁰⁰ Article 5(2) of the [Regulation](#) on preventing the dissemination of terrorist content online; See also D. Keller, [The CJEU's new filtering case, the terrorist content regulation, and the future of filtering mandates in the EU](#), CIS Blog, 2 December 2019, and L. Dutkiewicz and N. Krack on the Proposal for a Regulation on preventing the dissemination of terrorist content online pt. [I](#), [II](#), [III](#), CiTiP blog, 24-25 November 2020.

³⁰¹ Article 25 of the Directive [2011/93/EU](#) on combating sexual abuse and exploitation of children; See in particular Report on assessing the implementation of the measures referred to in Article 25 of the Directive 2011/93/EU, [COM\(2016\) 872 final](#), European Commission, 16 September 2016, on the implementation of Article 25.

³⁰² Article 28b(1) and (3) of the Audiovisual Media Services Directive [2010/13/EU](#) as amended by Directive [2018/1808](#).

³⁰³ For more details see the Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services, [SWD\(2020\) 348 final pt. 2/2](#), European Commission, 15 December 2020, pp. 97-98 and pp. 130-137.

³⁰⁴ Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services, [SWD\(2020\) 348 final pt. 2/2](#), European Commission, 15 December 2020, pp. 182-195.

³⁰⁵ Procedure [2020/0259 \(COD\)](#); for context see [Proposal for a Regulation on a temporary derogation from certain provisions of the e-Privacy Directive for the purpose of combating child sexual abuse online](#), Legislative Train Schedule, European Parliament; [Study on Commission proposal on the temporary derogation from the e-Privacy Directive for the purpose of fighting online child sexual abuse. Targeted substitute impact assessment](#), EPRS, European Parliament, February 2021.

³⁰⁶ Communication on preventing the dissemination of terrorist content online, [COM\(2018\) 640 final](#), European Commission, 12 September 2018, p. 10: 'In addition, Horizon 2020 supports research with a view to developing new technologies, including automated prevention of uploading of terrorism content.'

³⁰⁷ E. Frantziou, 'The Horizontal Effect of the Charter', *Cambridge Yearbook of European Legal Studies*, Vol. 22, 2020; [The impact of algorithms for online content filtering or moderation](#), Policy Department for Citizens' Rights and Constitutional Affairs, European Parliament, September 2020, pp. 55-56 as regards freedom of expression; [Study on Commission proposal on the temporary derogation from the e-Privacy Directive for the purpose of fighting online child sexual abuse. Targeted substitute impact assessment](#), EPRS, European Parliament, February 2021, pp. 25-26 as regards invoking the right to data protection and privacy against a legislative act that de facto promotes the deployment of voluntary measures (signals endorsement), but de jure maintains the prevailing uncertainty rather than legalises data processing (GDPR remains applicable); Article 8 CFR, particularly read in conjunction with Article 16 TFEU, is understood to comprise horizontal effect; S. Knebel, *Die Drittwirkung der Grundrechte und -freiheiten gegenüber Privaten*, Nomos, 2018, pp. 90-104.

³⁰⁸ [Broadband Europe](#), European Commission website.

with a fundamental right to internet access, if its scope extends to the ability to receive and impart online content.³⁰⁹ For those who consider that the DSA-COM is distantly, if at all, related to a hypothetical right to internet access, this overview may serve to illustrate the broader internet governance debate, not least because spill-over effects may occur. On 15 December 2020 the Commission tabled the Digital Services Act proposal,³¹⁰ which 'seeks to foster responsible and diligent behaviour by providers of intermediary services to ensure a safe online environment, which allows Union citizens and other parties to freely exercise their fundamental rights, in particular the freedom of expression and information'.³¹¹ To this end it i) enumerates liability exemptions of intermediary services providers³¹² for third-party information they transmit or store (Article 3-5 of the DSA-COM), ii) imposes asymmetric³¹³ due diligence obligations, inter alia concerning content moderation, online advertising³¹⁴ and algorithmic systems³¹⁵ (Chapter III of the DSA-COM), and iii) stipulate provisions on the implementation and enforcement of the regulation (Chapter IV of the DSA-COM).³¹⁶ The liability exemptions for online intermediaries lacking knowledge of, or control over, the information they transmit, remain necessary to prevent providers from adopting risk-averse strategies, such as excessive filtering, imposing restrictive conditions on business partners or not doing business at all.³¹⁷ So as not to discourage³¹⁸ the use of voluntary measures to combat illegal content, the regulation clarifies that these activities may be deployed without forfeiting (though likely jeopardising) the exemption from liability.³¹⁹ Conversely, the proposed asymmetric

³⁰⁹ While these content moderation rules mainly concern online service providers (rather than internet access providers) and plainly relate to the right to freedom of expression (rather than to the envisioned right to internet access), at least one researcher discussed content moderation rules in the right to internet access context (S. Tully, '[A Human Right to Access the Internet? Problems and Prospects](#)', *Human Rights Law Review*, Vol. 14(2), 2014, pp. 191-192). Certain rules of this proposal also apply to internet service providers and (prima facie) may be understood to incentivise content moderation tools (Article 26(2) and 27 of the DSA-COM).

³¹⁰ Proposal for a DSA, [COM\(2020\) 825 final](#), European Commission, 15 December 2020.

³¹¹ Explanatory memorandum of the proposal for a DSA, [COM\(2020\) 825 final](#), European Commission, 15 December 2020, p. 6.

³¹² See Article 2(f) and Recital 19 of the [DSA-COM](#) on intermediary serves; See Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 2/2](#), European Commission, 15 December 2020, pp. 167-181 for an in-depth delimitation of the services.

³¹³ Recital 35 of the [DSA-COM](#): 'The Regulation [...] sets out basic obligations applicable to all providers of intermediary services, as well as additional obligations for providers of hosting services and, more specifically, online platforms [that are not micro or small enterprises] and very large online platforms.' For an overview of the due diligence obligations see the explanatory memorandum of the [DSA-COM](#), pp. 14-15 and the graphic in the Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 1/2](#), European Commission, 15 December 2020, p. 73.

³¹⁴ Recital 52 of the [DSA-COM](#) on risks posed by advertisement.

³¹⁵ Recital 62 of the [DSA-COM](#) on risks posed by recommender systems.

³¹⁶ For a concise overview see the explanatory memorandum of the [DSA-COM](#), pp. 13-16.

³¹⁷ Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 1/2](#), European Commission, 15 December 2020, p. 48 and 52; For a background on this see T. Madiaga, [IDA EU liability regime for online intermediaries](#), In-depth analysis, EPRS, European Parliament, May 2020.

³¹⁸ Impact Assessment accompanying the Proposal for a Regulation on a Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 2/2](#), European Commission, 15 December 2020, p. 158: 'Some providers pointed out the legal risks of implementing voluntary measures: platforms are in general afraid that such voluntary measures would disqualify them from the safe harbours or lead to other legal issues (e.g. breach of privacy of their users). Through these voluntary proactive measures, intermediaries could be seen as no longer neutral, passive and technical – and consequently lose the benefit of the limited liability regime for hosting providers. [...]'. See [SWD\(2020\) 348 final pt. 2/2](#), pp. 182-195 on the voluntary measures in use and content moderation tools.

³¹⁹ Article 6 of the [DSA-COM](#). Recital 25 states 'Therefore, any [...] activities and measures that a given provider may have taken [aimed at detecting, identifying and acting against illegal content undertaken on a voluntary basis] *should not be taken into account when determining whether the provider can rely on an exemption from liability*, in particular as regards whether the provider provides its service neutrally and can therefore fall within the scope of the relevant provision, *without this rule however implying that the provider can necessarily rely thereon*.' Conversely, Recital 22 states 'The provider *can obtain such actual knowledge or awareness through, in particular, its own-initiative investigations or*

due diligence obligations aim to reign in intermediary behaviour and ensure that they operate responsibly. They would establish transparency and organisational obligations to facilitate the scrutiny of content moderation measures and safeguard accountability. Additionally, the draft regulation imposes stricter obligations on providers of hosting services and platforms as well as a set of basic content moderation processes. These processes would directly³²⁰ and indirectly³²¹ incentivise intermediaries to combat illegal content. To safeguard users' fundamental rights, they include information requirements and complaint mechanisms as well as transparency obligations. In general, very large platforms (> 45 million users)³²² are subject to more severe transparency and supervisory measures and are obliged to manage systemic risks,³²³ particularly those arising from the deployment of algorithmic systems.³²⁴ It remains uncertain whether very large platforms would need to mitigate risks presented by the amplification of harmful content that does not violate their terms and conditions, but adversely affects the exercise of fundamental rights (Article 26(1)(b) of the DSA-COM). Due to the potentially harmful impact of advertisements,³²⁵ platforms would also be subject to varying degrees of transparency obligations as regards advertising.³²⁶

As demonstrated by a dedicated own-initiative report by the European Parliament's Committee on Civil Liberties, Justice and Home Affairs (LIBE),³²⁷ numerous references in two other legislative reports by two European Parliament committees (IMCO and JURI)³²⁸ and an extensive section in the

notices submitted to it by individuals or entities in accordance with this Regulation in so far as those notices are sufficiently precise and adequately substantiated to allow a diligent economic operator to reasonably identify, assess and where appropriate act against the allegedly illegal content.' (Emphasis added). For background on the 'Good Samaritan' paradox see Study on hosting intermediary services and illegal content online, [SMART 2018/0033](#), DG CNECT, European Commission, 2018, pp. 40-42.

³²⁰ See Article 20(1) of the [DSA-COM](#): 'Online platforms shall suspend, for a reasonable period of time and after having issued a prior warning, the provision of their services to recipients of the service that frequently provide manifestly illegal content.'

³²¹ See Article 14(3) in conjunction with Article 5 of the [DSA-COM](#). Once platforms become aware of illegal content, they do not benefit from the liability exemption and may be held liable according to national laws. According to Recital 22 'The provider can obtain such actual knowledge or awareness through, in particular, its own-initiative investigations or notices submitted to it by individuals or entities in accordance with this Regulation in so far as those notices are sufficiently precise and adequately substantiated to allow a diligent economic operator to reasonably identify, assess and where appropriate act against the allegedly illegal content.' Providers are deterred from turning a blind eye by potential sanctions, including penalties (Article 42 and Recital 80), fines (Article 59) and periodic penalty payments (Article 60).

³²² On the definition see Article 25 and Recital 54 of the [DSA-COM](#). For details on the distinction between very large platforms and gatekeeper platforms see the Impact Assessment on a Proposal for a Regulation on Single Market For Digital Services (DSA), [SWD\(2020\) 348 final pt. 1/2](#), European Commission, 15 December 2020, p. 71. For details on the rationale of the 'very large platforms' definition see [SWD\(2020\) 348 final pt. 2/2](#), pp. 62-67.

³²³ Recital 56-57 of the [DSA-COM](#).

³²⁴ Particularly concerning recommender, content moderation and advertising systems, see Article 26(2) of the [DSA-COM](#). Risks may arise in connection with appropriate behaviour (e.g. inherent algorithmic bias), behaviour in breach of contract (content that is incompatible with a platform's conditions), illegal user behaviour (e.g. dissemination of illegal hate speech).

³²⁵ Recital 52 of the [DSA-COM](#): 'online advertisement can contribute to significant risks, ranging from advertisement that is itself illegal content, to contributing to financial incentives for the publication or amplification of illegal or otherwise harmful content and activities online, or the discriminatory display of advertising with an impact on the equal treatment and opportunities of citizens.' Recital 63 of the [DSA-COM](#): 'Very large online platforms should ensure public access to repositories of advertisements displayed on their online interfaces to facilitate supervision and research into emerging risks brought about by the distribution of advertising online, for example in relation to illegal advertisements or manipulative techniques and disinformation with a real and foreseeable negative impact on public health, public security, civil discourse, political participation and equality.'

³²⁶ Articles 24 and 30 of the [DSA-COM](#).

³²⁷ Report on the Digital Services Act and fundamental rights issues posed, [A9-0172/2020](#), European Parliament, 1 October 2020.

³²⁸ Report with recommendations to the Commission on the Digital Services Act: Improving the functioning of the Single Market, [A9-0181/2020](#), European Parliament, 7 October 2020, and Report with recommendations to the Commission

Commission's impact assessment,³²⁹ fundamental rights considerations significantly influenced the policy debate and design choices. The regulation attempts to balance fundamental rights, such as the right to freedom of expression and information, the right to respect for private and family life, the right to protection of personal data, the right to non-discrimination and the right to an effective remedy, the right to conduct business, as well as the right to human dignity, the rights of the child and the right to protection of (intellectual) property in a multi-stakeholder situation. Affected parties include intermediaries, intermediaries' business customers (traders and advertisers), users imparting content, users receiving content and persons related to the content ('content subjects'). To ensure the respect of fundamental rights, the Commission proposes a number of safeguards, such as the prohibition of general monitoring requirements, mandatory complaint procedures and oversight mechanisms. Additionally, the proposal contains a 'put-back' obligation³³⁰ in case the user lodges a successful complaint against decisions to a) remove or disable access to information, b) suspend or terminate the provision of the service, in whole or in part, or c) suspend or terminate the recipients' account. Despite these safeguards, platforms retain the power to determine their scope of moderation action by defining disfavoured but legal speech in their terms of services and community guidelines.³³¹ Depending on its scope, such content moderation regimes may also affect a *sui generis* right to internet access.

A right to access certain online services? While Article 17(3) of the DSA-COM and (a fundamental rights consistent application of) contract law would protect users against the arbitrary suspension or termination of accounts and services, it is uncertain whether an individual would be able to gain access to a platform if the provider refused to contract from the outset. While rather a *Gedankenexperiment* than common practice, access concerns *sensu stricto* may arise in case providers *predictively* refuse to contract or introduce (excessively) unfavourable terms based on social profiling information.³³² In other words, if platforms adapted their contracting behaviour based on a 'social background check'. The exclusion from such services may significantly affect the individual, since very large platforms are taking on the role of 'public spaces for expression and economic transactions'.³³³ Even if intermediaries were to adopt such practices, the indirect effect of pre-existing fundamental rights, such as the freedom from discrimination and the freedom of expression and information, might secure access to services for the individual.³³⁴

on a Digital Services Act: adapting commercial and civil law rules for commercial entities operating online, [A9-0177/2020](#), European Parliament, 5 October 2020.

³²⁹ [SWD\(2020\) 348 final pt. 1/2](#), pp. 60-66.

³³⁰ Article 17(3) of the [DSA-COM](#). On the topic in general, see D. Keller, [Who Do You Sue?](#), Aegis Series Paper No 1902, 29 January 2019, and M. Kettemann and S. Tiedke, ['Back up: can users sue platforms to reinstate deleted content?'](#), *Internet Policy Review*, Vol. 9(2), 4 June 2020, who discuss inter alia the applicability of the freedom from discrimination and the freedom of expression in relations between private entities (horizontal effect) with particular attention to the recent decision to issue a preliminary injunction against the exclusion of a right party from Facebook by the First Senate of the German Federal Constitutional Court (BVerfG), [1 BvQ 42/19](#), *Der III. Weg*, 22 May 2019. Similarly, see D. Holznagel, 'Put-back- Ansprüche gegen soziale Netzwerke: Quo Vadis?', *Computer und Recht*, Vol. 35(8), 2019, p. 518.

³³¹ von J. van Hoboken and D. Keller, [Design Principles for Intermediary Liability Laws](#), A working paper of the Transatlantic High Level Working Group on Content Moderation Online and Freedom of Expression, 8 October 2019, p. 5 suggest 'To protect users' free expression rights and prevent undue bias in content moderation practices, a law might try to impose limitations on TOS enforcement against protected expression (possibly in combination with requiring the private due process discussed in the previous section). To ensure that governments do not fail in their own human rights obligations, they might also be prevented from relying on companies' TOS instead of publicly enacted law to regulate speech. However, limiting TOS enforcement would have some clear downsides from the perspective of tackling illegal and harmful activity. [...].'

³³² Already today, certain credit rating or insurance premiums are calculated based on 'lifestyle or driving, or the inclusion in certain 'social clusters' based on ethnic or geographical origin', see [Algorithmic discrimination in Europe](#), DG Justice and Consumers, European Commission, 2021, p. 86. Social media content may also serve as a data source and could be used to gatekeep against 'unwelcome' users.

³³³ [SWD\(2020\) 348 final pt. 1/2](#), pp. 27-28.

³³⁴ J.-U. Pille, *Meinungsmacht sozialer Netzwerke*, Nomos, 2016, pp. 360-361 and 370-378, contemplates the introduction of an obligation to contract, modelled on universal services provisions, and assumes this would be consistent with

Depending on the envisioned scope, a right to internet access may reinforce the trajectory of these existing rights.

With its **Digital Education Action Plan** (2021-2027),³³⁵ the Commission fosters digital competences and thereby addresses one of the main barriers to internet access. In the Human Capital DESI Report 2020, the Commission found that 'the top reasons for not having internet access at home in 2019 remain the lack of need or interest (46 % of households without internet access in 2019), insufficient skills (44 %), equipment costs (26 %) and high cost barriers (24 %). [...] Lack of relevant skills remains by far the most important factor deterring households from having internet access at home. Moreover, given that this factor limits awareness of potential benefits from digitisation, it may also be among the reasons behind the large numbers of EU households that still claim not to have internet access at home because they do not need it'.³³⁶ The Digital Education Action Plan (2021-2027) sets fostering of a high-performing digital education ecosystem (apps, platforms, software) and enhancing digital competences (knowledge, skills and attitudes) as strategic priorities. As regards the former, the Commission plans to support the Gigabit connectivity of schools and prepare a proposal for a Council recommendation that will, inter alia, tackle connectivity and equipment gaps. In a related report, the European Parliament 'insists that broadband should be considered a public good and its infrastructure adequately funded to ensure that it is universally accessible and affordable as a critical step in closing the digital divide'.³³⁷ Parliament 'calls for specific measures and funding schemes to enhance access for all educational institutions, especially those in remote, rural and mountain areas with low connectivity [...]'. As regards enhancing digital competences, the Commission plans to, inter alia, develop common guidelines 'to foster digital literacy and tackle disinformation through education and training' and propose a Council recommendation on improving the provision of digital skill in education and training, including by investing in teacher professional development. In this context, the Commission emphasises that acquiring 'digital literacy can empower people of all ages to be more resilient, improve participation in democratic life and stay safe and secure online'.³³⁸ 'Countering disinformation and harmful speech through education and training is crucial for effective participation in society and democratic processes, especially by young people.' In its preceding Digital Education Action Plan (2018-2020), the Commission pointedly considered digital competences as 'life skills', comparable to literacy and numeracy.³³⁹

ePrivacy Regulation: Discussions touching on fundamental rights in respect to the ePrivacy Regulation³⁴⁰ revolve mainly around data protection and the confidentiality of communication. Both issues are typically raised after access is established. One could argue that the internet needs

fundamental rights; in this regard see A. Thierer, 'The Perils of Classifying Social Media Platforms as Public Utilities', in *CommLaw Conspectus*, Vol. 21(2), 2013; B. Raue, 'Meinungsfreiheit in sozialen Netzwerken', in *Juristen Zeitung*, Vol. 73(20), 2018, pp. 969-970 and D. Holznagel, 'Put-back-Ansprüche gegen soziale Netzwerke: Quo Vadis?', *Computer und Recht*, Vol. 35(8), 2019, p. 522 assume that already today an obligation to contract exist in certain cases. On a secondary level, see Directives [2004/113/EC](#) and [2000/43/EC](#).

³³⁵ Communication on Digital Education Action Plan 2021-2027, [COM\(2020\) 624 final](#), European Commission, 30 September 2020.

³³⁶ [Report on DESI 2020 – Human capital](#), European Commission.

³³⁷ Report on shaping digital education policy, [P9_TA\(2021\)0095](#), European Parliament, 25 March 2021, para 15.

³³⁸ Communication on Digital Education Action Plan 2021-2027, [COM\(2020\) 624 final](#), European Commission, 30 September 2020.

³³⁹ Staff working document on the Digital Education Action Plan, [SWD\(2018\) 12 final](#), European Commission, 17 January 2018; According to [COM\(2020\) 624 final](#), 90 % of jobs in all sectors in the future will require some form of digital skills, yet 35 % of Europe's workers lack these skills.

³⁴⁰ Proposal for a regulation on privacy and electronic communications, [COM\(2017\) 10 final](#), European Commission, 10 January 2017.

to be reasonably safe and confidential for access to be *meaningful*.³⁴¹ This would raise complicated questions about the delimitation of various fundamental rights (potential engulfing).

Section summary: Secondary legislation and actions

The tour d'horizon of EU secondary legislation and connectivity actions reveal that the EU has already taken crucial steps to ensure meaningful internet access across Europe. Article 100 of the European Electronic Communications Code presents the main mechanism to ensure universal connectivity. While measures such as the Open Internet Access Regulation and the Digital Education Action Plan equip users with the necessary protection and skills to take advantage of their access, the Digital Services Act proposal aims to reduce users' exposure to illegal activities and systemic risks online. Depending on a broad or narrow interpretation of the fundamental right's scope (see Section '3.1.3. Fleshing out the scope – a case study', Subsection 'The rights perspective'), more or less legislation and actions may be understood as an implementing measure thereof.

Particularly the universal service provisions of the European Electronic Communications Code cast doubt on whether a European fundamental right to internet access is necessary. However, while it obliges states to provide for internet access, it does not *prima facie* provide users with a justiciable right.

³⁴¹ B. Çalı, 'The Case for the Right to Meaningful Access to the Internet as a Human Right in International Law', in A. von Arnould et al., *The Cambridge Handbook of New Human Rights*, Cambridge University Press, January 2020, p. 280.

6. Conclusion

This analysis explores whether a standalone European right to internet access may be modelled on existing provisions at the national and European level. In particular, it draws on Article 87f of the German Basic Law, Article 84 of the European Electronic Communications Code and No 20 of the European Pillar of Social Rights in order to suggest a right to connectivity, based on which individuals may effectively demand from states to provide for electronic communications services that provide access to the internet. Based on this right, individuals would only be able to compel Member States (by way of legal action) to provide access where states failed to provide for the fundamentally protected minimum level of connectivity (see Section summary 'delimiting the scope' for details). Further investigations are necessary to clarify whether the scope extends to features such as network security and network neutrality, as well as to ancillary goods and services, such as digital training services, terminal devices and access to certain services *on the internet*.³⁴² Similarly, the delimitation and interplay with other fundamental rights, notably the right to freedom of expression and information, merit further attention. On a European level, the European Convention on Human Rights or the EU Charter of Fundamental Rights may serve as a bedrock for the envisioned right. An attempt to introduce such a right in the latter may face doctrinal challenges.

However, particularly Articles 84-92 of the EECC and the many European connectivity policies raise doubts on the necessity and efficiency of such an approach. Article 84 of the EECC *obliges* Member States to ensure minimum broadband connectivity for the consumers in their territories. Where the EU discovers implementation deficits, it may launch infringement procedures (Article 258 of the TFEU)³⁴³ or further empower citizens to enforce the supply of a connection and realise universal connectivity by providing for a *subjective right* in Article 84 of the EECC.³⁴⁴ Recent studies on enacting a positive right to internet access,³⁴⁵ commissioned in the course of transposing the EECC into German law, showcase design options for a right that integrates with a complex regulatory framework.

Nevertheless, a codification on a fundamental level may better reflect the internet's unmatched significance for the individual and effectively contribute to closing the digital divide.³⁴⁶ As a fundamental right, it trumps the meaning of any sector-specific legislation or action and would extensively raise awareness. Individuals may feel more entitled and claim their right more decisively or even litigate. Incidentally, such a fundamental right may thereby spur internet adoption and future-proof network expansion, i.e. boost next-generation connectivity. Additionally, the introduction of a fundamental right to internet access would present a potent political tool to herald

³⁴² S. Tully, '[A Human Right to Access the Internet? Problems and Prospects](#)', *Human Rights Law Review*, Vol. 14(2), 2014, p. 186 states 'There is no shared understanding on how such a right can or out to be defined. What precisely are individuals entitled to: access to a computer, the infrastructure, information, the ability to communicate or a comprehensive service? [...]'.

³⁴³ Commission opens infringement procedures against 24 Member States for not transposing new EU telecom rules, IP/21/206, [press release](#), European Commission, 4 February 2021.

³⁴⁴ B. Holznagel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', *Verbraucher und Recht*, Vol. 34(12), 2019, p. 442 and B. Holznagel and C. Vierling, 'Instrumente des Verbraucherschutzes in der Netzregulierung', in T. Brönneke et al., *Verbraucherrechtssvollzug*, Nomos, 2020, p. 83. Other avenues such as public enforcement through supervisory authorities may be explored.

³⁴⁵ [Rechtliche Herausforderungen bei der Schaffung von Anreizen fuer einen flächendeckende Ausbau von Glasfaserinfrastrukturen](#), Z30/SEV/288.3/1784/DG13, German Federal Ministry of Transport and Digital Infrastructure (BMVI), 25 July 2019; [Rechtlich abgesicherter Anspruch auf schnelles Internet: Gutachten stellt sinnvolle Umsetzungsszenarien vor](#), German Broadband Association (BREKO), 1 February 2019; B. Holznagel, 'Verbraucherschutz in der Netzregulierung gewinnt an Bedeutung', *Verbraucher und Recht*, Vol. 34(12), 2019, p. 441.

³⁴⁶ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020.

Europe's digital transformation and sovereignty³⁴⁷ and demonstrate progressiveness as well as the capacity of the enacting organisation to deliver. The relevant organisation would actively determine developments in the area of 'digital rights', rather than passively follow the evolution of case law. Commercial viability³⁴⁸ and concerns spilling over from the freedom of expression and information context, particularly as regards the lawfulness of connectivity and content restrictions, would likely present sticking points when negotiating the introduction of a standalone right to internet access.

In the meantime, Europe should continue to pursue its ambitious EU 2030 digital targets,³⁴⁹ inter alia through public policies such as the Recovery and Resilience Facility and the Digital Education Action Plan. Governments, businesses and civil society organisations aiming to boost connectivity may also find guidance in the UN roadmap for digital cooperation³⁵⁰ or take example from industry projects committed to bringing connectivity to remote areas such as SpaceX' Starlink³⁵¹ or Facebook's connectivity initiatives.³⁵²

Although not further discussed in this analysis, it should be noted that when shifting the perspective from the European level to a global level, the sense of urgency for the introduction of such a right increases dramatically: 'almost half the world population was not connected to the internet in 2019 and therefore not able to take advantage of the transformative power of information and communication technologies'.³⁵³

³⁴⁷ T. Madiaga, [Digital sovereignty for Europe](#), Briefing, EPRS, European Parliament, July 2020.

³⁴⁸ A. Peacock, *Human Rights and Digital Divide*, Routledge, 18 December 2020, p. 158.

³⁴⁹ According to the Communication on 2030 Digital Compass, [COM\(2021\)118](#), European Commission, 9 March 2021, p. 6, it is the Commission's 'proposed level of ambition that by 2030 all European households will be covered by a Gigabit network, with all populated areas covered by 5G'.

³⁵⁰ Road map for digital cooperation, [A/74/821](#), United Nations General Assembly, 29 May 2020, p. 17.

³⁵¹ [Starlink](#), SpaceX' website. See also [Phasa-35](#), BAE Systems website.

³⁵² [Connectivity](#), Facebook's website.

³⁵³ More urgent than ever: Universal connectivity to bring 3.7 billion people online, [press release](#), International Telecommunication Union, 11 December 2020.

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With digital technologies permeating all areas of life, and online access becoming a prerequisite for the exercise of a number of fundamental rights, the internet plays a crucial role for the individual, during but also looking beyond the coronavirus pandemic. As calls for a fundamental right to internet access resurface, it would come as no surprise if legislators engaged further with the topic and assessed policy and legislative options. Against this backdrop, the present analysis i) identifies design and operating parameters for a potential fundamental right to internet access, ii) sets out a design option, iii) reviews benefits and drawbacks of its potential recognition and iv) provides a brief overview of EU legislation and actions that may interact with such a novel right.

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